

## CCRB INVESTIGATIVE RECOMMENDATION

|                                                                                                                                                                              |                                                                      |                           |                                                       |                                               |                                            |
|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------------------------------------------------------------------|---------------------------|-------------------------------------------------------|-----------------------------------------------|--------------------------------------------|
| Investigator:<br>Mac Muir                                                                                                                                                    | Team:<br>Squad #06                                                   | CCRB Case #:<br>201908117 | <input checked="" type="checkbox"/> Force             | <input checked="" type="checkbox"/> Discourt. | <input checked="" type="checkbox"/> U.S.   |
|                                                                                                                                                                              |                                                                      |                           | <input checked="" type="checkbox"/> Abuse             | <input checked="" type="checkbox"/> O.L.      | <input checked="" type="checkbox"/> Injury |
| Incident Date(s)<br>Sunday, 08/18/2019 2:00 AM, Friday,<br>10/23/2020 12:00 AM, Thursday,<br>03/11/2021 12:00 AM, Tuesday, 03/16/2021<br>12:00 AM, Thursday, 06/24/2021 12:0 | Location of Incident:<br>§ 87(2)(b) § 87(2)(b)<br>PSA 7 Stationhouse | 18 Mo. SOL<br>10/5/2021   | Precinct:<br>40                                       |                                               |                                            |
| Date/Time CV Reported<br>Fri, 09/13/2019 1:11 PM                                                                                                                             | CV Reported At:<br>CCRB                                              | How CV Reported:<br>Phone | Date/Time Received at CCRB<br>Fri, 09/13/2019 1:11 PM |                                               |                                            |

| Complainant/Victim | Type | Home Address |
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| Witness(es) | Home Address |
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| Subject Officer(s)          | Shield | TaxID  | Command |
|-----------------------------|--------|--------|---------|
| 1. POM Brian Greaiqe        | 13811  | 960616 | PSA 7   |
| 2. POM Forrester Johnson    | 16943  | 964078 | PSA 7   |
| 3. POM John Joyce           | 05953  | 961846 | PSA 7   |
| 4. Officers                 |        |        |         |
| 5. LT Eric Dym              | 00000  | 933762 | PSA 7   |
| 6. SGT Natalie Bautista     | 01127  | 926408 | PSA 7   |
| 7. An officer               |        |        |         |
| 8. POM Hammer Colon         | 20710  | 965004 | PSA 7   |
| 9. POM Dorian Navarro       | 08340  | 963666 | PSA 7   |
| 10. POM Manolin Molina      | 27653  | 936051 | PSA 7   |
| 11. POM Lorvin Fernandez    | 09421  | 956643 | PSA 7   |
| 12. POM Keventh Arroyo      | 01059  | 960176 | PSA 7   |
| 13. POM Victor Carrasquillo | 16720  | 963904 | PSA 7   |
| 14. POM Jimmy Perez         | 08269  | 941242 | PSA 7   |

| Officer(s)      | Allegation                                                               | Investigator Recommendation |
|-----------------|--------------------------------------------------------------------------|-----------------------------|
| A . LT Eric Dym | Abuse: Lieutenant Eric Dym entered § 87(2)(b) in the Bronx (08/18/2019). | A . Substantiated           |

| Officer(s)                | Allegation                                                                                                               | Investigator Recommendation         |
|---------------------------|--------------------------------------------------------------------------------------------------------------------------|-------------------------------------|
| B . POM Forrester Johnson | Force: At § 87(2)(b) in the Bronx, Police Officer Forrester Johnson used physical force against § 87(2)(b) (08/18/2019). | B . Substantiated                   |
| C . POM Forrester Johnson | Force: At § 87(2)(b) in the Bronx, Police Officer Forrester Johnson used physical force against § 87(2)(b) (08/18/2019). | C . Substantiated                   |
| D . LT Eric Dym           | Force: At § 87(2)(b) in the Bronx, Lieutenant Eric Dym used physical force against § 87(2)(b) (08/18/2019).              | D . Substantiated                   |
| E . LT Eric Dym           | Force: At § 87(2)(b) in the Bronx, Lieutenant Eric Dym used physical force against § 87(2)(b) (08/18/2019).              | E . Substantiated                   |
| F . Officers              | Force: At § 87(2)(b) in the Bronx, officers used physical force against individuals.                                     | F . Officer(s) Unidentified         |
| G . LT Eric Dym           | Discourtesy: At § 87(2)(b) in the Bronx, Lieutenant Eric Dym spoke discourteously to individuals (08/18/2019).           | G . Substantiated                   |
| H . LT Eric Dym           | Discourtesy: At § 87(2)(b) in the Bronx, Lieutenant Eric Dym spoke discourteously to § 87(2)(b) (08/18/2019).            | H . Substantiated                   |
| I . LT Eric Dym           | Abuse: At § 87(2)(b) in the Bronx, Lieutenant Eric Dym damaged § 87(2)(b) property (08/18/2019).                         | I . Substantiated                   |
| J . LT Eric Dym           | Abuse: At § 87(2)(b) in the Bronx, Lieutenant Eric Dym entered § 87(2)(b) in the Bronx (08/18/2019).                     | J . Substantiated                   |
| K . An officer            | Discourtesy: At § 87(2)(b) in the Bronx, an officer spoke discourteously to § 87(2)(b)                                   | K . Officer(s) Unidentified         |
| L . Officers              | Discourtesy: At § 87(2)(b) in the Bronx, officers spoke discourteously to individuals.                                   | L . Officer(s) Unidentified         |
| M . LT Eric Dym           | Force: At § 87(2)(b) in the Bronx, Lieutenant Eric Dym pointed his gun at § 87(2)(b) (08/18/2019).                       | M . Substantiated                   |
| N . LT Eric Dym           | Force: At § 87(2)(b) in the Bronx, Lieutenant Eric Dym pointed his gun at § 87(2)(b) (08/18/2019).                       | N . Substantiated                   |
| O . An officer            | Force: At § 87(2)(b) in the Bronx, an officer pointed his gun at § 87(2)(b)                                              | O . Officer(s) Unidentified         |
| P . SGT Natalie Bautista  | Force: At § 87(2)(b) in the Bronx, Sergeant Natalie Bautista pointed her gun at § 87(2)(b)                               | P . Miscellaneous - Subject Retired |
| Q . LT Eric Dym           | Force: At § 87(2)(b) in the Bronx, Lieutenant Eric Dym pointed his gun at § 87(2)(b) (08/18/2019).                       | Q . Substantiated                   |
| R . LT Eric Dym           | Discourtesy: At § 87(2)(b) in the Bronx, Lieutenant Eric Dym spoke discourteously to § 87(2)(b) (08/18/2019).            | R . Substantiated                   |
| S . LT Eric Dym           | Force: At § 87(2)(b) in the Bronx, Lieutenant Eric Dym pointed his gun at § 87(2)(b) (08/18/2019).                       | S . Substantiated                   |
| T . An officer            | Force: At § 87(2)(b) in the Bronx, an officer used physical force against § 87(2)(b)                                     | T . Officer(s) Unidentified         |

| Officer(s)                  | Allegation                                                                                                                 | Investigator Recommendation         |
|-----------------------------|----------------------------------------------------------------------------------------------------------------------------|-------------------------------------|
| U . An officer              | Force: At § 87(2)(b) in the Bronx, an officer restricted § 87(2)(b) breathing.                                             | U . Officer(s) Unidentified         |
| V . An officer              | Off. Language: At § 87(2)(b) in the Bronx, an officer made remarks to § 87(2)(b) based upon his gender.                    | V . Officer(s) Unidentified         |
| W . An officer              | Discourtesy: At § 87(2)(b) in the Bronx, an officer spoke discourteously to § 87(2)(b)                                     | W . Officer(s) Unidentified         |
| X . LT Eric Dym             | Force: At § 87(2)(b) in the Bronx, Lieutenant Eric Dym used physical force against § 87(2)(b)                              | X . Unsubstantiated                 |
| Y . LT Eric Dym             | Discourtesy: At § 87(2)(b) in the Bronx, Lieutenant Eric Dym spoke discourteously to § 87(2)(b) (08/18/2019).              | Y . Substantiated                   |
| Z . SGT Natalie Bautista    | Discourtesy: At § 87(2)(b) in the Bronx, Sergeant Natalie Bautista spoke discourteously to Kaitlyn Rivera.                 | Z . Miscellaneous - Subject Retired |
| AA. SGT Natalie Bautista    | Discourtesy: At § 87(2)(b) in the Bronx, Sergeant Natalie Bautista spoke discourteously to § 87(2)(b)                      | AA. Miscellaneous - Subject Retired |
| AB. Officers                | Force: At § 87(2)(b) in the Bronx, officers used physical force against § 87(2)(b)                                         | AB. Officer(s) Unidentified         |
| AC. POM Lorvin Fernandez    | Force: At § 87(2)(b) in the Bronx, Police Officer Lorvin Fernandez used physical force against § 87(2)(b)                  | AC. Unsubstantiated                 |
| AD. POM Forrester Johnson   | Force: At § 87(2)(b) in the Bronx, Police Officer Forrester Johnson used physical force against § 87(2)(b)                 | AD. Unsubstantiated                 |
| AE. POM Victor Carrasquillo | Force: At § 87(2)(b) in the Bronx, Police Officer Victor Carrasquillo used physical force against § 87(2)(b) (08/18/2019). | AE. Substantiated                   |
| AF. LT Eric Dym             | Force: At § 87(2)(b) in the Bronx, Lieutenant Eric Dym used physical force against § 87(2)(b) (08/18/2019).                | AF. Substantiated                   |
| AG. LT Eric Dym             | Discourtesy: At § 87(2)(b) in the Bronx, Lieutenant Eric Dym spoke discourteously to § 87(2)(b) (08/18/2019).              | AG. Substantiated                   |
| AH. An officer              | Discourtesy: At § 87(2)(b) in the Bronx, an officer spoke discourteously to § 87(2)(b)                                     | AH. Officer(s) Unidentified         |
| AI. An officer              | Force: At § 87(2)(b) in the Bronx, an officer used physical force against § 87(2)(b)                                       | AI. Officer(s) Unidentified         |
| AJ. An officer              | Force: At § 87(2)(b) in the Bronx, an officer used a chokehold against § 87(2)(b)                                          | AJ. Officer(s) Unidentified         |
| AK. An officer              | Force: At § 87(2)(b) in the Bronx, an officer restricted § 87(2)(b) breathing.                                             | AK. Officer(s) Unidentified         |
| AL. LT Eric Dym             | Force: At § 87(2)(b) in the Bronx, Lieutenant Eric Dym used physical force against § 87(2)(b)                              | AL. Unsubstantiated                 |
| AM. SGT Natalie Bautista    | Force: Sergeant Natalie Bautista used physical force against § 87(2)(b)                                                    | AM. Miscellaneous - Subject Retired |
| AN. LT Eric Dym             | Discourtesy: Lieutenant Eric Dym spoke discourteously to § 87(2)(b)                                                        | AN. Unsubstantiated                 |
| AO. SGT Natalie Bautista    | Discourtesy: Sergeant Natalie Bautista spoke discourteously to § 87(2)(b)                                                  | AO. Miscellaneous - Subject Retired |

| Officer(s)                  | Allegation                                                                                                                                               | Investigator Recommendation         |
|-----------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------|-------------------------------------|
| AP. LT Eric Dym             | Abuse: At § 87(2)(b) in the Bronx, Lieutenant Eric Dym arrested § 87(2)(b) (08/18/2019).                                                                 | AP. Substantiated                   |
| AQ. LT Eric Dym             | Abuse: At § 87(2)(b) in the Bronx, Lieutenant Eric Dym arrested § 87(2)(b) (08/18/2019).                                                                 | AQ. Substantiated                   |
| AR. LT Eric Dym             | Abuse: At § 87(2)(b) in the Bronx, Lieutenant Eric Dym arrested § 87(2)(b) (08/18/2019).                                                                 | AR. Substantiated                   |
| AS. SGT Natalie Bautista    | Discourtesy: At § 87(2)(b) in the Bronx, Sergeant Natalie Bautista spoke discourteously to § 87(2)(b)                                                    | AS. Miscellaneous - Subject Retired |
| AT. Officers                | Abuse: At § 87(2)(b) in the Bronx, officers damaged § 87(2)(b) property.                                                                                 | AT. Officer(s) Unidentified         |
| AU. POM Hammer Colon        | Discourtesy: At the PSA 7 Stationhouse, Police Officer Hammer Colon spoke discourteously to § 87(2)(b) (08/18/2019).                                     | AU. Substantiated                   |
| AV. LT Eric Dym             | Abuse: At the PSA 7 Stationhouse, Lieutenant Eric Dym failed to provide § 87(2)(b) with a business card (08/18/2019).                                    | AV. Substantiated                   |
| AW. POM Brian Greaige       | Abuse: At the PSA 7 Stationhouse, Police Officer Brian Greaige failed to provide § 87(2)(b) with a business card (08/18/2019).                           | AW. Substantiated                   |
| AX. LT Eric Dym             | Untruthful Stmt.: Lieutenant Eric Dym provided a misleading official statement to the CCRB (06/24/2021).                                                 | AX. Substantiated                   |
| AY. LT Eric Dym             | Untruthful Stmt.: Lieutenant Eric Dym provided a false official statement to the CCRB (06/24/2021).                                                      | AY. Substantiated                   |
| AZ. POM Forrester Johnson   | Untruthful Stmt.: Police Officer Forrester Johnson provided a false official statement to the CCRB (07/16/2021).                                         | AZ. Substantiated                   |
| BA. POM Forrester Johnson   | Untruthful Stmt.: Police Officer Forrester Johnson provided a misleading official statement to the CCRB (11/23/2020).                                    | BA. Substantiated                   |
| BB. POM Victor Carrasquillo | Untruthful Stmt.: Police Officer Victor Carrasquillo provided a misleading official statement to the CCRB (03/11/2021).                                  | BB. Substantiated                   |
| BC. POM Manolin Molina      | Untruthful Stmt.: There is evidence suggesting Police Officer Manolin Molina provided a false official statement in violation of PG 203-08 (03/16/2021). | BC. Substantiated                   |
| § 87(2)(g), § 87(4-b)       |                                                                                                                                                          |                                     |
| § 87(2)(g), § 87(4-b)       |                                                                                                                                                          |                                     |
| § 87(2)(g), § 87(4-b)       |                                                                                                                                                          |                                     |
| § 87(2)(g), § 87(4-b)       |                                                                                                                                                          |                                     |
| § 87(2)(g), § 87(4-b)       |                                                                                                                                                          |                                     |
| § 87(2)(g), § 87(4-b)       |                                                                                                                                                          |                                     |
| § 87(2)(g), § 87(4-b)       |                                                                                                                                                          |                                     |



| Officer(s)            | Allegation | Investigator Recommendation |
|-----------------------|------------|-----------------------------|
| § 87(2)(g), § 87(4-b) | [REDACTED] | [REDACTED]                  |
| § 87(2)(g), § 87(4-b) | [REDACTED] | [REDACTED]                  |
| § 87(2)(g), § 87(4-b) | [REDACTED] | [REDACTED]                  |
| § 87(2)(g), § 87(4-b) | [REDACTED] | [REDACTED]                  |
| § 87(2)(g), § 87(4-b) | [REDACTED] | [REDACTED]                  |
| § 87(2)(g), § 87(4-b) | [REDACTED] | [REDACTED]                  |
| § 87(2)(g), § 87(4-b) | [REDACTED] | [REDACTED]                  |

### Case Summary

On September 13, 2019, § 87(2)(b) submitted this complaint with the CCRB via phone on behalf of her grandson, § 87(2)(b).

On August 17, 2019, at approximately 11:00 p.m., § 87(2)(b) 18 years old, § 87(2)(b) 15 years old, and § 87(2)(b) 17 years old, stood in front of § 87(2)(b) in the Bronx. Lt. Eric Dym and Sgt. Natalie Bautista of PSA-7 drove up and spoke to § 87(2)(b) who ultimately said, “Suck my dick.” Either Lt. Dym or Sgt. Bautista replied, “We’re gonna get you.” Lt. Dym proceeded to call 15 to 20 officers from PSA 7 on their cell phones and directed them to respond.

On August 18, 2019, at approximately 1:00 a.m., Lt. Dym and PO Forrester Johnson of PSA-7 climbed the fire escape and entered § 87(2)(b) § 87(2)(b) (**Allegation A: Abuse of Authority: Substantiated**). § 87(2)(b) 16 years old, and § 87(2)(b) 17 years old, were on the fire escape when Lt. Dym and PO Johnson dragged them through the window of § 87(2)(b) (**Allegations B, C, D and E: Force: Substantiated**). Unknown officers allegedly knelt § 87(2)(b) and § 87(2)(b) in the back to pin them to the ground (**Allegation F: Force: Officer(s) Unidentified**). Lt. Dym screamed, “Where’s § 87(2)(b) You better fucking figure it out” (**Allegations G: Discourtesy: Substantiated**). Lt. Dym arrested § 87(2)(b) and § 87(2)(b) for trespassing and ordered officers to search throughout the building to find § 87(2)(b).

§ 87(2)(b) and § 87(2)(b) were inside § 87(2)(b) along with § 87(2)(b) § 87(2)(b) father, and § 87(2)(b) § 87(2)(b) 15-year-old sister, both of whom were asleep. Lt. Dym knocked on the front door to § 87(2)(b) and said, “Open the fucking door” (**Allegation H: Discourtesy: Substantiated**). Lt. Dym knocked the peephole out and broke the front door (**Allegations I and J: Abuse of Authority: Substantiated**). Approximately five unknown officers climbed the fire escape and attempted to open the window to § 87(2)(b) from the outside. An officer allegedly yelled, “Open the fucking window” (**Allegation K: Discourtesy: Officer Unidentified**).

Approximately ten officers entered § 87(2)(b) including Lt. Dym, Sgt. Bautista, PO Johnson, and PO Lorvin Fernandez and PO Victor Carrasquillo. Unknown officers said, “Get the fuck down” and “come out with your fucking hands up” (**Allegation L: Discourtesy: Officers Unidentified**). Lt. Dym pointed his gun at § 87(2)(b) and § 87(2)(b) (**Allegations M and N: Force: Substantiated**). An unknown officer and Sgt. Bautista pointed their guns at § 87(2)(b) (**Allegation O: Force: Officer Unidentified**) (**Allegation P: Force: Miscellaneous – Subject Retired**). Lt. Dym pointed his gun at § 87(2)(b) face and said, “Get the fuck on the ground” (**Allegation Q: Force: Substantiated**) (**Allegation R: Discourtesy: Substantiated**). Lt. Dym pointed his gun at § 87(2)(b) (**Allegation S: Force: Substantiated**). An unknown officer allegedly tripped § 87(2)(b) to the ground and placed his knee on § 87(2)(b) back, making it harder to breathe, and said, “Don’t act like a bitch” (**Allegations T and U: Force: Officer Unidentified**) (**Allegation V: Offensive Language: Officer Unidentified**). Unknown officers allegedly told § 87(2)(b) “Shut up. Put your fucking hands behind your back” (**Allegation W: Discourtesy: Officers Unidentified**). Lt. Dym allegedly dragged § 87(2)(b) down a hallway (**Allegation X: Force: Unsubstantiated**). Lt. Dym told § 87(2)(b) to “shut the fuck up” and “get the fuck up” (**Allegation Y: Discourtesy: Substantiated**). Sgt. Bautista allegedly used the expletive “fuck” several times towards § 87(2)(b) and § 87(2)(b) (**Allegation Z and AA: Discourtesy: Miscellaneous – Subject Retired**). An unknown officer pushed § 87(2)(b) chest and head against the kitchen table (**Allegation AB: Force: Officer Unidentified**). PO Carrasquillo found § 87(2)(b) hiding under a pile of laundry. PO Fernandez and PO Johnson grappled with § 87(2)(b) to get him into handcuffs (**Allegations AC and AD: Force: Unsubstantiated**). PO Carrasquillo punched § 87(2)(b) in the shoulders and the face (**Allegation AE: Force: Substantiated**). Lt. Dym placed his foot on § 87(2)(b) head and said, “You’re not a fucking tough guy

now” (**Allegation AF: Force: Substantiated**) (**Allegation AG: Discourtesy: Substantiated**), lifted § 87(2)(b) to his feet, and struck his head against a wall (**within Allegation AF**). An unknown officer allegedly told § 87(2)(b) “You fucking knew he was in there,” said “shut the fuck up,” slapped § 87(2)(b) in the face, grabbed him by the throat, and threw him from his chair to the floor (**Allegation AH: Discourtesy: Officer Unidentified**) (**Allegations AI, AJ, and AK: Force: Officer Unidentified**). Lt. Dym and Sgt. Bautista allegedly each kicked § 87(2)(b) in the ribs one time (**Allegation AL: Force: Unsubstantiated**) (**Allegation AM: Force: Miscellaneous – Subject Retired**). Lt. Dym allegedly said, “What kind of fucking father are you?” to § 87(2)(b) (**Allegation AN: Discourtesy: Unsubstantiated**). Sgt. Bautista allegedly used various expletives with the word “fuck” to § 87(2)(b) Sr and § 87(2)(b) (**Allegation AO and within AA: Discourtesy: Miscellaneous – Subject Retired**). Lt. Dym instructed officers to arrest everyone in the apartment, arrested § 87(2)(b) and § 87(2)(b) and summonsed § 87(2)(b) (**Allegations AP, AQ, and AR: Abuse of Authority: Substantiated**). Lt. Dym again used various expletives with the word “fuck” to § 87(2)(b) (**within Allegation Y**). Outside of the building, Sgt. Bautista allegedly used the expletive “fuck” to § 87(2)(b) to § 87(2)(b) (**Allegation AS: Discourtesy: Miscellaneous – Subject Retired**). Unknown officers allegedly damaged § 87(2)(b) mirrors inside § 87(2)(b) (**Allegation AT: Abuse of Authority: Officers Unidentified**). At the PSA-7 stationhouse PO Hammer Colon used various expletives to § 87(2)(b) including, “fuck” and “shit” (**Allegation AU: Discourtesy: Substantiated**). Lt. Dym and PO Brian Greage failed to provide § 87(2)(b) business cards as required (**Allegations AV and AW: Abuse of Authority: Substantiated**).

Lt. Dym provided two false official statements to the CCRB (**Allegations AX and AY: Untruthful Statement: Substantiated**). PO Johnson provided a false official statement and misleading statement to the CCRB (**Allegations AZ and BA: Untruthful Statement: Substantiated**). PO Carrasquillo provided a misleading official statement to the CCRB (**Allegation BB: Untruthful Statement: Substantiated**). PO Manolin Molina made a misleading official statement to the CCRB (**Allegation BC: Untruthful Statement: Substantiated**) § 87(2)(g), § 87(4-b)

§ 87(2)(g), § 87(4-b)

§ 87(2)(g), § 87(4-b)

§ 87(2)(b) was initially arrested for felony eavesdropping [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(2)(b) was arrested for endangering the welfare of a child and obstruction of governmental administration. [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(2)(b) was arrested for disorderly conduct. [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(2)(b) was issued a summons for disorderly conduct [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(2)(b) was arrested for criminal trespass [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(2)(b) was arrested for criminal trespass. [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(2)(b) was arrested for criminal trespass and obstruction of governmental administration.

A referral for potential criminal official misconduct was made to the Bronx DA’s office on June 22, 2021, regarding Lt. Dym omitting material information from official police documentation and ordering officers to claim their BWCs were dead. A referral was made to IAB on June 17, 2021. A referral to OCD for failing to voucher marijuana was made on September 2, 2021.

The investigation obtained partial BWC footage (BR 03 – 09) and cell phone footage (BR 10).

### Findings and Recommendations

#### Allegation A – Abuse of Authority: Lieutenant Eric Dym entered § 87(2)(b) in the Bronx, § 87(2)(b) in the Bronx.

As Lt. Dym was the supervisor on scene and ordered officers into the building, this allegation is pleaded against him. There was no BWC footage of this entry.

It is undisputed that at approximately 11:30 p.m. on August 17, 2019, § 87(2)(b) and § 87(2)(b) smoked marijuana on the stoop of § 87(2)(b) and went into the building sometime before 1:00 a.m. At approximately 1:00 a.m., Lt. Dym entered the building by climbing through the window of § 87(2)(b).

§ 87(2)(b) testified that between 10:00 p.m. and 11:00 p.m., she walked near § 87(2)(b) and saw § 87(2)(b) and § 87(2)(b) sitting on the front steps outside. Lt. Dym and Sgt. Bautista pulled up in an unmarked black police vehicle and spoke to § 87(2)(b) for approximately five minutes. At the end of their conversation, § 87(2)(b) said, “Suck my dick,” and one of the officers said, “We’re gonna get you.” Then § 87(2)(b) and § 87(2)(b) all went upstairs into § 87(2)(b) on the § 87(2)(b) floor.

§ 87(2)(b) testified that Lt. Dym, Sgt. Bautista, and PO Molina parked in front of the building. Lt. Dym and Sgt. Bautista told § 87(2)(b) that he and his friends had to leave because they were blocking the building entrance. When § 87(2)(b) refused, the officers appeared to call for backup. § 87(2)(b) went inside and locked the building’s front door. Lt. Dym walked to the front door and checked that it was locked. § 87(2)(b) and § 87(2)(b) went upstairs to § 87(2)(b) home. § 87(2)(b) looked out of the back window and saw that officers were preparing to climb the fire escape. He received a call from an unknown individual who told him to leave the building because the police were trying to get inside. § 87(2)(b) did not leave § 87(2)(b) until officers forcibly entered it later that night.

§ 87(2)(b) and § 87(2)(b) corroborated § 87(2)(b) testimony and added that § 87(2)(b) and § 87(2)(b) ran to § 87(2)(b) § 87(2)(b) floor apartment and remained there for approximately three hours, until officers forcibly entered later that night.

§ 87(2)(b) testified that she was asleep in her bedroom when officers forcibly entered § 87(2)(b). She learned of the incident in § 87(2)(b) from § 87(2)(b) and § 87(2)(b) at the PSA-7 stationhouse.

§ 87(2)(b) testified that he and § 87(2)(b) sat on the fire escape behind § 87(2)(b) between the § 87(2)(b) and § 87(2)(b) floor. He was not aware of any incident taking place and never saw § 87(2)(b) at this location.

§ 87(2)(b) testified that he was on the roof of § 87(2)(b) smoking marijuana with § 87(2)(b). He was never inside § 87(2)(b) prior to being dragged in through the window by officers. He was not aware § 87(2)(b) was inside the building until after the incident.

Lt. Dym testified that he knew § 87(2)(b), § 87(2)(b), § 87(2)(b) and § 87(2)(b) prior to this incident because they were all members of the ‘YG Blood’ gang. On the evening of this incident, he had highly credible information § 87(2)(e), § 87(2)(f).

§ 87(2)(b) Lt. Dym only communicated this information to Sgt. Bautista. He never communicated this to the DA’s office. During his CCRB interview, Lt. Dym refused to provide any additional information § 87(2)(e), § 87(2)(f).



§ 87(2)(e), § 87(2)(f) Over the course of the evening, Lt. Dym and Sgt. Bautista repeatedly drove past § 87(2)(b) and they saw § 87(2)(b) outside. Although Lt. Dym believed he was armed, he did not attempt to stop or frisk § 87(2)(b). At 11:30 p.m., Lt. Dym and Sgt. Bautista saw § 87(2)(b) alone outside § 87(2)(b). He cursed at the officers, gave them ‘the finger,’ pulled down his pants, exposed his genitals, and said, “suck my dick.” § 87(2)(b) fled into § 87(2)(b). Based on the information Lt. Dym had § 87(2)(b) the general scope of his enforcement, § 87(2)(b) exposing himself, the general existence of gang activity, and to ensure § 87(2)(b) own safety, Lt. Dym and Sgt. Bautista conferred and decided that they needed to apprehend § 87(2)(b) immediately. Lt. Dym used his cell phone to call available officers, including PO Joyce, PO Johnson, PO Molina, and PO Carrasquillo. He did not remember which other officers he called. As a “Special Operations Unit”, it was not necessary to make radio notifications. In addition, it was important to be as quiet as possible. Thirty minutes later, Lt. Dym and Sgt. Bautista walked into the backyard of § 87(2)(b). From there, they could see inside § 87(2)(b) where § 87(2)(b) and several unknown female individuals were drinking alcohol and smoking marijuana. As the apartment was vacant, he decided to arrest everyone inside. Lt. Dym called the NCO, PO Perez, who confirmed to him that § 87(2)(b) was vacant. Over the phone, Lt. Dym called additional officers to the location. At least five or six more officers responded. Lt. Dym did not remember who they were. Lt. Dym, Sgt. Bautista, PO Johnson, PO Joyce, and PO Carrasquillo all stood behind the building observing the people inside § 87(2)(b). Lt. Dym had probable cause to arrest the people in § 87(2)(b) for drinking alcohol, smoking marijuana, trespassing, and “committing mischief,” which he defined as “being boisterous, not treating the apartment with any care, utilizing for fun.” Lt. Dym added that § 87(2)(b) had committed a lewd act. He did not suspect anyone of any other offenses. Lt. Dym observed § 87(2)(b) for an hour. Based on PO Perez’s information, Lt. Dym was confident that § 87(2)(b) was vacant and should have been locked. Lt. Dym believed that a search warrant was not required because he had observed people trespassing in an apartment that did not belong to them and had probable cause to arrest them. He also had reasonable suspicion that there was a potential burglary taking place. There was no other reason that provided Lt. Dym with the legal justification to enter without a warrant. It did not occur to Lt. Dym to freeze the location and obtain a search warrant because that process was not required. After approximately one hour of viewing § 87(2)(b) and the people inside, Lt. Dym and PO Johnson climbed the fire escape. From there, Lt. Dym observed all the same individuals inside § 87(2)(b). Lt. Dym and PO Johnson climbed through the window of § 87(2)(b) and into the apartment. As they did, all civilians, including § 87(2)(b) ran out of the apartment front door.

Sgt. Bautista retired from the NYPD on May 29, 2021 (BR 11), before a CCRB interview could be conducted. Her memo book noted that she noticed her BWC with a green light and that the battery was dead (BR 12). However, as per the manuals for both Viewu and Axon BWC models, a green light indicates that a BWC is powered on and functioning (BR 13-16).

PO Johnson was interviewed by the CCRB twice regarding this incident. At about 11:30 p.m., Lt. Dym called him over to § 87(2)(b). When PO Johnson and PO Carrasquillo arrived together, many units were present, but PO Johnson could not remember which. Lt. Dym told PO Johnson that § 87(2)(b) exposed himself to Sgt. Bautista, and that PO Johnson and PO Carrasquillo should go to the back of § 87(2)(b) and switch to a tactical radio frequency. There was no discussion about obtaining a warrant. PO Johnson and PO Carrasquillo stood in an alleyway. PO Johnson could see the back room of § 87(2)(b). There, four or five individuals smoked marijuana and drank alcohol. PO Johnson recognized § 87(2)(b) distinctive afro as he walked back-and-forth inside § 87(2)(b). Suddenly, PO Johnson heard yelling coming from § 87(2)(b) and ran through a back entrance, up a stairwell, to the front door of § 87(2)(b). The door was open and “people were running everywhere.” PO Johnson looked inside and saw people being handcuffed, then ran to the § 87(2)(b) floor. During his second interview, PO Johnson denied climbing the fire escape or entering § 87(2)(b) through a window.

PO Joyce testified that at 11:30 p.m. he received a call from Lt. Dym, who directed him to drive to § 87(2)(b) because § 87(2)(b) had exposed himself. When he arrived, an officer – PO Joyce did not remember who – told him that people were trespassing in a vacant apartment on the § 87(2)(b) floor. PO Joyce waited on the sidewalk in front of § 87(2)(b) in the Bronx for two and a half hours. He was not present for the initial entry into § 87(2)(b).

PO Carrasquillo testified that Lt. Dym called either PO Johnson or PO Joyce and told the two of them to come to § 87(2)(b). When they arrived, Lt. Dym and Sgt. Bautista told him to stand outside the back entrance of the building and make sure no one went in or out. They did not explain anything that had happened. PO Carrasquillo stood behind the building. He did not remember if he saw anything in § 87(2)(b). He did not witness the entry.

PO Fernandez and PO Molina testified that at approximately 12:00 a.m. they received phone calls from Lt. Dym, who told them to drive to § 87(2)(b). When they arrived, Lt. Dym said that there was a group of kids in a vacant apartment. As per PO Molina, Lt. Dym said he observed a burglary. PO Fernandez and PO Molina waited in front of the building for approximately an hour, at which point Lt. Dym guided PO Fernandez to the back of the building to make sure no one ran away. PO Fernandez and the other officers – he could not remember who – were instructed to apprehend any kids who tried to run out of the building. Ultimately, PO Fernandez entered § 87(2)(b). PO Fernandez did not remember how officers got into § 87(2)(b) or which officers went in. PO Molina remembered Lt. Dym running out of § 87(2)(b) and opening the front door to the building. When PO Molina entered, Lt. Dym, Sgt. Bautista, and PO Johnson were already inside. § 87(2)(b) and § 87(2)(b) were in the living room. Lt. Dym instructed PO Fernandez to record the apartment with his BWC to create a record that it was unoccupied.

PO Perez, the NCO for PSA-7, testified that at approximately 11:00 p.m. he received a phone call from Lt. Dym, who told him that he was with Sgt. Bautista and that § 87(2)(b) had committed an act that he could not recall. Lt. Dym asked him to confirm that § 87(2)(b) was vacant. PO Perez knew the people who managed this building, which was a privately owned. He sent a group text to the building managers and asked them whether § 87(2)(b) was occupied. One of the building managers replied and confirmed that § 87(2)(b) was unoccupied.

The CCRB did not receive any documentation to indicate that any officer believed that § 87(2)(b) was in possession of a firearm. There was no tactical plan or warrant regarding this incident. The only EVENT was from a single radio notification from Lt. Dym, who at 1:16 a.m. requested one additional unit to § 87(2)(b) for “absolutely no emergency.” That unit transported § 87(2)(b) and § 87(2)(b) to the PSA-7 Stationhouse.

None of the Arrest Reports noted how officers gained entry to § 87(2)(b).

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Before any officers entered § 87(2)(b) PO Perez texted employees of § 87(2)(b) and received confirmation that § 87(2)(b) was vacant. He relayed this information to Lt. Dym. However, it is undisputed that no officer requested or received consent from § 87(2)(b) to enter § 87(2)(b).

The right of the people to be secure in their persons and effects against unreasonable searches and seizures shall not be violated, unless a warrant is issued based upon probable cause. USCS Const. Amend. 4, Part 1 of 16 (BR 72). The warrants clause of the Fourth Amendment protects commercial buildings as well as private homes. Marshall v. Barlow's, Inc., 436 U.S. 307 (1978) (BR 73). Some



courts have ruled that when a police officer enters a commercial area during business hours, in the same way as might be expected of any other person, the officer has not conducted a search. Zimmerman v. City of Oakland, 255 F.3d 734 (2001) (BR 74). But although the owner of commercial property enjoys a diminished expectation of privacy, the USSC has ruled that, like the occupant of a residence, the businessman has a constitutional right to go about his business free from unreasonable official entries upon his private commercial property. See v. Seattle, 387 U.S. 541 (1967) (BR 75).

The burden to prove the existence of sufficiently exceptional circumstances to the warrant requirement is placed squarely on the shoulders of the government, and more so when there is ample opportunity to obtain a warrant. People v. Knapp, 52 N.Y.2d 689 (1981) (BR 18).

The courts have ruled that there are three applicable exceptions to the warrant requirement: the emergency doctrine, hot pursuit, and the plain view doctrine.

A police officer may enter a residence without a warrant or the occupant's consent under the emergency doctrine if two prongs are met. First, the officer must have reasonable grounds to believe that there is an emergency at hand and an immediate need for assistance in the protection of life or property, or to prevent violence. Second, there must be some reasonable basis, approximating probable cause, to associate the emergency with the area or place to be searched. People v. Rodriguez, 77 A.D.3d 280 (2010) (BR 68). Brigham City v. Stuart, 547 U.S. 398 (2006) (BR 69).

The hot pursuit exception to the warrant requirement applies only when the officers are in immediate and continuous pursuit of a suspect from the scene of a crime. In situations where the underlying offense is only a misdemeanor, law enforcement must yield to the Fourth Amendment in all but the rarest cases. Welsh v. Wisconsin, 466 U.S. 740 (1984) (BR 70).

If an officer observes contraband from outside a premises, an entry under the plain view doctrine will only be lawful if officers have lawful access to the premises, by way of a search warrant or some exception to the warrant requirement such as exigent circumstances. People v. Vega 276 A.D.2d 414 (2010) (BR 71).

§ 87(2)(g)

The investigation did not credit Lt. Dym's testimony § 87(2)(e), § 87(2)(f) Lt. Dym refused to answer any questions that might have indicated the source's reliability, credibility, or authenticity; and he did not indicate to the other officers present that he believed § 87(2)(b) was armed; and no officers corroborated Lt. Dym's testimony about § 87(2)(b) allegedly having a weapon.

Lt. Dym entered § 87(2)(b) by scaling a fire escape and climbing in through a window with PO Johnson. All of the other officers, including PO Johnson, denied any awareness of this method of entry. Lt. Dym entered § 87(2)(b) after, he claimed, his own BWC had died. Sgt. Bautista, his partner, falsely noted that her own BWC was dead as well. Lt. Dym failed to document this incident over the radio, and he failed to have an officer with a functioning BWC record any of the crimes he allegedly witnessed, although it was required by the Patrol Guide that every officer present be recording at the time.

Although PO Perez confirmed with § 87(2)(b) that § 87(2)(b) was vacant, no officer requested or received consent to enter, § 87(2)(g)

§ 87(2)(g)

As Lt. Dym and Sgt. Bautista conferred before deciding to arrest § 87(2)(b) their pursuit was not immediate. As they conferred, called for backup, waited 30 minutes, drove around the block and entered the backyard, and observed § 87(2)(b) inside § 87(2)(b) for another hour § 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that **Allegation A be Substantiated.**

**Allegation B – Force: At § 87(2)(b) in the Bronx, Police Officer Forrester Johnson used physical force against § 87(2)(b)**

**Allegation C – Force: At § 87(2)(b) in the Bronx, Police Officer Forrester Johnson used physical force against § 87(2)(b)**

**Allegation D – Force: At § 87(2)(b) in the Bronx, Lieutenant Eric Dym used physical force against § 87(2)(b)**

**Allegation E – Force: At § 87(2)(b) in the Bronx, Lieutenant Eric Dym used physical force against § 87(2)(b)**

**Allegation F – Force: At § 87(2)(b) in the Bronx, officers used force against individuals.**

PO Molina's BWC footage (BR 09), was timestamped at 1:05 a.m. and depicted Lt. Dym speak into a radio while he stood on the § 87(2)(b) floor hallway to § 87(2)(b). Suddenly, PO Molina ran into § 87(2)(b) and PO Johnson ran toward an open window. PO Johnson and Lt. Dym dragged either § 87(2)(b) or § 87(2)(b) in through the open window. Officers struggled with someone. The audio began and an officer said, "Get down." Either § 87(2)(b) or § 87(2)(b) yelled, "Ah. My back. I got asthma. I can't breathe." Lt. Dym yelled, "Which one's this?" PO Molina replied, "I don't know." Lt. Dym said, "Is it § 87(2)(b) Sgt. Bautista yelled, "Handcuff him." PO Molina said, "Stop resisting man." Either § 87(2)(b) or § 87(2)(b) said, "Stop searching my bag." PO Johnson repeatedly said, "Give me your hand." PO Molina repeatedly said, "I got it." At 00:55 (VLC timestamp) into the video, Lt. Dym screamed, "Where's § 87(2)(b) Either § 87(2)(b) or § 87(2)(b) replied, "I don't know." Lt. Dym yelled, "You better fucking figure it out." Either § 87(2)(b) or § 87(2)(b) yelled that they could not breathe. PO Molina's BWC video ended abruptly.

§ 87(2)(b) testified that he was sitting on the fire escape with § 87(2)(b) when suddenly the apartment window flew open. Lt. Dym grabbed § 87(2)(b) foot and dragged him into the dark apartment. Other unknown officers ran from around the building, up the fire escape, grabbed § 87(2)(b) and pulled him through the apartment into the window. The officers, including Lt. Dym, PO Johnson, and Sgt. Bautista, pinned § 87(2)(b) and § 87(2)(b) face-down on the ground. The officers used their knees to hold § 87(2)(b) and § 87(2)(b) down. § 87(2)(b) felt knees on his back and his arms, which caused bruising on his back. He was unable to describe this as anything other than the officers "beating on" him. The officers handcuffed § 87(2)(b) and § 87(2)(b) sat them down, and dragged them into the back room of the apartment.

§ 87(2)(b) testified that he and § 87(2)(b) were smoking on the roof of § 87(2)(b) and used the fire escape to leave the building. PO Johnson reached toward a large open window and said, "Come here." PO Johnson and Sgt. Bautista dragged § 87(2)(b) inside through the window.

Officers dragged § 87(2)(b) into the apartment as well.

Lt. Dym testified that several minutes after he and PO Johnson climbed into the apartment window, § 87(2)(b) and § 87(2)(b) came down the fire escape from the roof. PO Johnson and Lt. Dym told them to stop, they complied, and then Lt. Dym and PO Johnson accessed the window and grabbed each of them by the arm. Lt. Dym and PO Johnson guided them into the apartment from the window without incident. They were both handcuffed upright without any resistance. § 87(2)(b) and § 87(2)(b) were both under arrest, and Lt. Dym assigned officers to watch them. After watching the video, Lt. Dym still did not remember either § 87(2)(b) or § 87(2)(b) resisting. He acknowledged that there appeared to be “some difficulty” in the video but repeated that he did not remember any force being necessary. The video did not refresh his recollection of the incident.

During PO Johnson’s first of two statements, he testified that when he reached the § 87(2)(b) floor, § 87(2)(b) and § 87(2)(b) were being handcuffed inside § 87(2)(b). He did not indicate that he was the person handcuffing them. PO Johnson heard yelling and ran directly upstairs. During his second CCRB interview, he testified that he ran inside § 87(2)(b) and saw § 87(2)(b) and § 87(2)(b). The officers in the apartment said, “Stop right there,” and instructed § 87(2)(b) and § 87(2)(b) to step inside. § 87(2)(b) and § 87(2)(b) complied. § 87(2)(b) came through the window and laid flat on the floor. PO Johnson told § 87(2)(b) to place his hands behind his back. § 87(2)(b) complied. PO Johnson placed § 87(2)(b) into handcuffs. § 87(2)(b) did exactly what he was instructed to do. No officers struck § 87(2)(b) or § 87(2)(b) while they were on the floor. He was presented with PO Molina’s footage and stated that it depicted § 87(2)(b) come through the window voluntarily and being handcuffed. Upon reviewing the video for a second time, PO Johnson stated, “I couldn’t see it [him pulling § 87(2)(b) and § 87(2)(b) inside],” and reiterated that he did not pull either of them through the window. He then testified that he was not sure whether he was even depicted in the video.

PO Molina testified that Lt. Dym let him into the building when he heard a commotion on the § 87(2)(b) apartment. PO Molina heard someone say that there were two people on the fire escape coming through the window. PO Molina followed Lt. Dym into the § 87(2)(b) floor apartment and saw § 87(2)(b) and § 87(2)(b) coming in through the apartment window. PO Molina was unable to describe what these two individuals were doing. He did not recall if PO Johnson was present. He did not learn what they were arrested for. He exited the building. He denied having any interaction with § 87(2)(b) or § 87(2)(b) on the incident date.

Arrest #§ 87(2)(b) (BR 20), generated by PO Johnson and approved by Lt. Dym, notes that § 87(2)(b) was arrested for trespassing and obstruction of governmental administration. The arrest narrative notes that he was “observed with multiple defendants inside § 87(2)(b) and that “while officers tried to apprehend him he did resist by running away from officers trying to apprehend him.” The arrest report notes that no force was used and that no BWC footage captured the incident. Arrest #§ 87(2)(b) (BR 21), generated by PO Johnson and approved by Lt. Dym, notes that § 87(2)(b) was arrested for trespassing, no force was used and no BWC footage captured the incident.

Force may be used when it is reasonable to ensure the safety of a member of service or a § 87(2)(b) person, or otherwise protect life, or when it is reasonable to place a person in custody or to prevent escape from custody. In all circumstances force must be reasonable. Patrol Guide Procedure 221-01 (BR 22)

§ 87(2)(b) and § 87(2)(b) alleged that they were dragged into the apartment from the fire escape. § 87(2)(b) alleged that they were both subjected to physical force and a struggle that lasted at least 30 seconds. Their accounts were corroborated by BWC footage. Lt. Dym and PO Johnson both testified that § 87(2)(b) and § 87(2)(b) were completely compliant, and that they used no force. Even when presented with BWC footage to the contrary, neither accounted for the discrepancy. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

it is recommended that **Allegations B, C, D, E be Substantiated.** § 87(2)(g) is recommended that **Allegation F** be closed as **Officers Unidentified.**

**Allegation G – Discourtesy: At § 87(2)(b) in the Bronx, Lieutenant Eric Dym spoke discourteously to individuals.**

As stated above, PO Molina's BWC, beginning at 0:52, showed Lt. Dym yell, "You better fucking figure it out," to either § 87(2)(b) or § 87(2)(b)

Lt. Dym was presented with PO Molina's BWC footage and denied saying, "You better fucking figure it out."

The NYPD mission includes a promise to treat every citizen with courtesy, professionalism, and respect. Patrol Guide Procedure 200-02 (BR 23). In Disciplinary Case #796247/04 (BR 24) the NYPD held that "when a police officer uses an otherwise impolite word during a stressful encounter where that officer is attempting to maintain control of the situation, the officer's verbal slip does not rise to the level of actionable misconduct." § 87(2)(g)

§ 87(2)(g)

it is recommended that **Allegation G** be **Substantiated.**

**Allegation H – Discourtesy: At § 87(2)(b) in the Bronx, Lieutenant Eric Dym spoke discourteously to § 87(2)(b)**

**Allegation I – Abuse of Authority: At § 87(2)(b) in the Bronx, Lieutenant Eric Dym damaged § 87(2)(b) property.**

**Allegation J – Abuse of Authority: Lieutenant Eric Dym entered § 87(2)(b) in the Bronx.**

It is undisputed that Lt. Dym instructed officers to go door-to-door through § 87(2)(b) looking for § 87(2)(b)

PO Molina made a BWC recording that began at 1:05 a.m. It showed officers entering § 87(2)(b) and arresting § 87(2)(b) and § 87(2)(b) PO Fernandez made a BWC recording at 1:42 a.m. He testified that it was created prior to officers entering § 87(2)(b) PO Fernandez made an additional BWC at 2:04 a.m. that began after officers had left the building and were transporting arrestees.

§ 87(2)(b) testified that Lt. Dym approached § 87(2)(b) and stood in the outside hallway. § 87(2)(b) turned off the apartment lights and watched Lt. Dym through the peephole. Sgt. Bautista, PO Molina, and other officers stood nearby. Lt. Dym appeared to notice § 87(2)(b) shadow under the front door and banged on the front door while repeatedly telling § 87(2)(b) to open it. § 87(2)(b) asked whether Lt. Dym had a warrant. Lt. Dym did not reply. § 87(2)(b) said that he was not going to open the door. Officers appeared to kick the door because only the bottom half of the door was being damaged. Lt. Dym knocked the peephole out of the front door, and it fell into the house. Lt. Dym said, § 87(2)(b) Open the fucking door."

§ 87(2)(b) testified that he heard officers go door-to-door in the building asking where § 87(2)(b) lived. When officers reached the § 87(2)(b) floor, an unknown officer said, "Police. Open the fucking door." Lt. Dym broke the peephole, looked inside, said, § 87(2)(b) and told him to open



the door. Officers broke down the front door and Lt. Dym was the first officer to enter § 87(2)(b)

§ 87(2)(b) testified that she was asleep but awoke to banging and someone screaming, “Open the fucking door.” § 87(2)(b) walked into the common area of the apartment and observed § 87(2)(b) holding the apartment door closed by leaning against it. The peephole had been knocked out and someone was looking inside. § 87(2)(b) went into § 87(2)(b) bedroom, but he would not wake up. § 87(2)(b) and § 87(2)(b) entered the bedroom. She heard the front door open, and officers ordered them to come out with their hands up. Over thirteen plainclothes officers entered the apartment.

§ 87(2)(b) testified that officers broke the peephole to § 87(2)(b). An unknown officer said, § 87(2)(b) “I know you’re in there. Come out,” and told § 87(2)(b) to come outside. § 87(2)(b) believed that Lt. Dym and Sgt. Bautista kicked down the front door.

§ 87(2)(b) testified that he was asleep in § 87(2)(b) when § 87(2)(b) shoved him to wake him up. He asked what was wrong and she replied that police were kicking the front door. § 87(2)(b) stood up and saw § 87(2)(b) and § 87(2)(b). He did not know where § 87(2)(b) was. He heard a loud bang and looked down the hallway, where he saw Lt. Dym and Sgt. Bautista.

§ 87(2)(b) testified that at approximately 2:00 a.m., someone on the street told her officers had broken into her home. She immediately went upstairs and photographed damage to her door and peephole. The photographs depicted the lock to § 87(2)(b) bent as if the door had been knocked in, and that the peephole had been knocked out of the doorframe (BR 25 – 30).

§ 87(2)(b) § 87(2)(b) friend, testified that she was with § 87(2)(b) when she first returned to the apartment. The lock was broken, and it appeared that someone had broken inside.

Lt. Dym testified that he knew § 87(2)(b) lived in § 87(2)(b) but he instructed officers to check every apartment in the building to find § 87(2)(b). He did this to eliminate the possibility that § 87(2)(b) was hiding anywhere. Some of the apartments were vacant. He did not recall whether he personally went into any of these apartments. PO Perez told Lt. Dym that he spoke with a member of § 87(2)(b) who said that he knew for a fact that § 87(2)(b) was inside § 87(2)(b) at that time. Lt. Dym did not know how the § 87(2)(b) employee would have been able to verify this. Because of this, Lt. Dym went to § 87(2)(b) with PO Johnson and other officers – he could not remember which officers. The door to § 87(2)(b) was ajar, so Lt. Dym had even further reason to believe that § 87(2)(b) and § 87(2)(b) were inside. The door was open just enough so that Lt. Dym could see inside. The peephole was missing, and through the peephole, Lt. Dym could see § 87(2)(b). He told § 87(2)(b) to show his hands. He could not remember exactly how he phrased this command. Lt. Dym heard what sounded like the slide-lock of a firearm. He described this as the sound of either racking a firearm or loading a firearm or “the metal of a gun.” Because of this, there was an emergency reason to access the apartment. This scared Lt. Dym. He entered the apartment to mitigate his fear. Lt. Dym believed that he had two legal justifications to enter the apartment – 1) he had the emergency exception because he believed that § 87(2)(b) or someone else in the apartment § 87(2)(e), § 87(2)(f) § 87(2)(b) along with the sound of what sounded like a firearm, and 2) he had a form of hot pursuit and was confident that § 87(2)(b) and § 87(2)(b) were in § 87(2)(b). There were no other reasons for him to enter the apartment. Lt. Dym pushed the door open. He could not approximate how many officers were present. He denied knocking out the peephole, denied saying, § 87(2)(b) “open the fucking door”, and denied knocking the door down or in. PO Carrasquillo was one of the officers who entered the apartment.

PO Perez testified that Lt. Dym assigned him to conduct an interior patrol of § 87(2)(b) § 87(2)(b)

PO Perez incrementally walked through the building, knocking on doors to see if anyone answered or if § 87(2)(b) was inside. He knocked on the doors of the two apartments on the § 87(2)(b) floor. Nobody answered and both doors were closed shut. He did not know what apartment § 87(2)(b) lived in, never verified this information nor was made aware of how officers entered § 87(2)(b).

PO Fernandez testified that inside of § 87(2)(b) Lt. Dym informed him that § 87(2)(b) was inside § 87(2)(b). PO Johnson, Sgt. Bautista, and additional unknown officers went upstairs with Lt. Dym and PO Fernandez. Together they stood outside § 87(2)(b). PO Fernandez faced away from the door guarding the apartment as some officers – he did not know who – knocked on the door for a little while. He did not know whether the officers were going to go into the apartment. He did not remember an officer knocking the peephole out of the front door. Officers probably kicked the front door. He did not remember how officers entered § 87(2)(b). He did not recall if Lt. Dym used the word ‘fuck’ while outside of § 87(2)(b). He did not know why officers were going into the apartment. He believed officers entered via emergency circumstance to look for § 87(2)(b). He did not remember who entered the apartment first, but all the officers entered at once.

PO Johnson testified that he ran from § 87(2)(b) to § 87(2)(b) and immediately entered because he was following other officers – he could not remember who. The door was ajar. He did not learn how officers first got into the apartment. He did not see any damage to the door. He did not recall Lt. Dym breaking down the front door. He did not recall any officer ramming the door. He did not observe any evidence that the peephole had been knocked out. He could not recall if he observed any sign of a forced entry into the apartment. He did not recall Lt. Dym saying, § 87(2)(b) open the fucking door.” He immediately saw Lt. Dym and Sgt. Bautista inside but could not recall what either of them were doing.

PO Joyce testified that after he arrived, he stood on the sidewalk outside of § 87(2)(b) for two and a half hours and did not remember what happened during that time. At approximately 2:00 a.m., Lt. Dym called him to § 87(2)(b). He did not remember if he observed any damage to the doorway. Lt. Dym made him the arresting officer for three individuals and did not tell him anything about what happened inside the apartment, whether there was video footage, or whether they forcibly entered § 87(2)(b). Lt. Dym specifically instructed PO Joyce what to put on each arrest report and summons. PO Joyce did not remember if he was made aware of a forcible entry related to any of these arrests.

PO Molina testified that after § 87(2)(b) and § 87(2)(b) were arrested, he stood in front of the building with PO Fernandez. He denied going to the § 87(2)(b) floor. He was asked whether PO Fernandez went upstairs to the § 87(2)(b) floor and replied, “We both stood outside.” He did not recall any officers discussing an incident on the § 87(2)(b) floor. He was not made aware of approximately five additional arrests on the § 87(2)(b) floor.

PO Carrasquillo testified that he was not present when officers first entered § 87(2)(b). Over the radio, he heard that people had been apprehended on the § 87(2)(b) floor. He ran upstairs and did not see any sign of a forced entry.

None of the arrests stemming from this incident noted how or why officers entered § 87(2)(b). There was no BWC footage or documentation of this entry. No firearm was recovered during this incident.

The NYPD mission includes a promise to treat every citizen with courtesy, professionalism, and respect. Patrol Guide Procedure 200-02 (BR 23). In Disciplinary Case #796247/04 (BR 24) the NYPD held that “when a police officer uses an otherwise impolite word during a stressful encounter where that officer is attempting to maintain control of the situation, the officer’s verbal slip does not rise to the level of actionable misconduct.” The burden to prove the existence of sufficiently exceptional circumstances is placed squarely on the shoulders of the government, and more so when

there is ample opportunity to obtain a warrant. People v. Knapp (BR 18).

§ 87(2)(g)

it is recommended that Allegations K and L be closed as Officers Unidentified.

**Allegation M – Abuse of Authority: At § 87(2)(b) in the Bronx, Lieutenant Eric Dym pointed his gun at Derrick § 87(2)(b)**

**Allegation N – Abuse of Authority: At § 87(2)(b) in the Bronx,**

**Lieutenant Eric Dym pointed his gun at § 87(2)(b)**

**Allegation O – Abuse of Authority: At § 87(2)(b) in the Bronx, an officer pointed his gun at § 87(2)(b)**

**Allegation Q – Abuse of Authority: At § 87(2)(b) in the Bronx,**

**Lieutenant Eric Dym pointed his gun at § 87(2)(b)**

**Allegation R – Discourtesy: At § 87(2)(b) in the Bronx, Lieutenant Eric**

**Dym spoke discourteously to § 87(2)(b)**

**Allegation S – Abuse of Authority: At § 87(2)(b) in the Bronx,**

**Lieutenant Eric Dym pointed his gun at § 87(2)(b)**

§ 87(2)(b) testified that Lt. Dym entered § 87(2)(b) followed by five to eleven unknown officers. Lt. Dym pointed his gun at everyone in the apartment except for § 87(2)(b) who was hiding.

§ 87(2)(b) testified that as officers entered the apartment, he ran into § 87(2)(b) bedroom, hid in the closet, closed the door, and covered himself with a pile of laundry. § 87(2)(b) sat on the bed.

§ 87(2)(b) testified that Lt. Dym entered the bedroom, pointed a gun directly in her face, and said, “Get the fuck on the ground.” § 87(2)(b) got onto the ground chest-first.

§ 87(2)(b) testified that when officers broke the door in, Lt. Dym, Sgt. Bautista, and a 5’7” tall Hispanic male officer with a flat-brim hat had their guns were pointed toward him. The officers all screamed for everyone to get on the floor. § 87(2)(b) went down to his knees with his hands raised as Lt. Dym, Sgt. Bautista, and the Hispanic male officer kept their guns pointed at § 87(2)(b). He believed that Lt. Dym, Sgt. Bautista, and the Hispanic male officer pointed their guns at every civilian inside the apartment.

§ 87(2)(b) testified that Lt. Dym and Sgt. Bautista entered the apartment with their guns out. Unknown officers entered § 87(2)(b) bedroom with their guns out.

Lt. Dym testified that he drew his firearm as he entered § 87(2)(b). He did so because there were fleeing perpetrators and he had credible information that they were in possession of a firearm, he heard “the metal of a gun” or “the racking of a firearm,” and because § 87(2)(b) had been arrested for a shooting before. There were no other reasons he drew his firearm. He did not know where his gun was pointed, but it was not pointed at § 87(2)(b). He denied pointing his firearm at anyone inside the apartment. He observed § 87(2)(b) and told him to come toward him with his hands up. He denied pointing the firearm at § 87(2)(b) because the tip of the gun was pointed down. He did not know when he re-holstered his firearm. He denied saying, “Get the fuck on the ground” to § 87(2)(b).

PO Johnson did not recall if officers drew their firearms or whether they pointed them at any civilians. He did not recall Lt. Dym pointing his firearm and telling § 87(2)(b) “Get the fuck on the ground.”

PO Molina denied ever going into § 87(2)(b) or that he ever went to the § 87(2)(b) floor of the building.



PO Fernandez testified that officers – he could not recall who – entered § 87(2)(b) without their guns drawn. He did not see any gun drawn inside § 87(2)(b). When they first entered, no civilians appeared to be inside. An officer – he did not remember who – approached a bedroom door and spoke to civilians through it. He denied hearing Lt. Dym say, “Get the fuck on the ground.” He added that he was unable to account for what anyone said because so many people were speaking.

PO Arroyo testified that although he had a memo book entry noting that PO Joyce and PO Johnson arrested seven people, he had no recollection of this incident.

PO Carrasquillo testified that when he saw Lt. Dym and Sgt. Bautista inside § 87(2)(b) their firearms were holstered. He did not remember if any other officers were present. He did not hear Lt. Dym use any profanity.

PO Fernandez is a 5’9” Hispanic male (BR 33). PO Molina is a 5’7” Hispanic male (BR 34). PO Arroyo is a 5’8” tall Hispanic male (BR 35). PO Fernandez’s BWC (BR 04), shows that PO Molina wore a flat-brim hat during this incident. PO Molina’s BWC (BR 09), showed that another unknown officer wore a similar hat.

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

An officer may take appropriate self-protective measures when he lawfully confronts an individual and reasonably believes him to be armed or otherwise dangerous to the officer or others. An officer drawing their weapon would be deemed a permissible act of self-protection provided only that it was related to specific and articulable facts from which it was reasonable to infer that the suspect was armed and dangerous. People v. Finlayson, 76 A.D.2d 670, 679 (1980) (BR 36). Force may be used when it is reasonable to ensure the safety of a member of the service or a third person, or otherwise protect life, or when it is reasonable to place a person in custody or to prevent escape from custody. In all circumstances, any application or use of force must be reasonable under the circumstances. Patrol Guide Procedure 221-01 (BR 22). The NYPD mission includes a promise to treat every citizen with courtesy, professionalism, and respect. Patrol Guide Procedure 200-02 (BR 23). In Disciplinary Case #796247/04 (BR 24) the NYPD held that “when a police officer uses an otherwise impolite word during a stressful encounter where that officer is attempting to maintain control of the situation, the officer’s verbal slip does not rise to the level of actionable misconduct.” The exemption applied where an officer issued repeated instructions that a civilian ignored.

§ 87(2)(g)

§ 87(2)(b) Lt. Dym refused to answer any questions that might have indicated the source’s reliability, credibility, or authenticity; and he did not indicate to the other officers present that he believed § 87(2)(b) was armed; and no officers corroborated Lt. Dym’s testimony about § 87(2)(b) allegedly having a weapon.

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(b) it is recommended that **Allegation O** be closed as **Officers Unidentified**.

§ 87(2)(g) **Allegations M, N, Q, and S** be **Substantiated**.

§ 87(2)(g) it is recommended that **Allegation R** be **Substantiated**.

**Allegation T – Force:** At § 87(2)(b) in the Bronx, an officer used physical force against Derrick § 87(2)(b)

**Allegation U – Force:** At § 87(2)(b) in the Bronx, an officer restricted Derrick § 87(2)(b)'s breathing.

**Allegation V – Offensive Language:** At § 87(2)(b) in the Bronx, an officer made remarks to § 87(2)(b) based upon his gender.

**Allegation W – Discourtesy:** At § 87(2)(b) in the Bronx, an officer spoke discourteously to § 87(2)(b)

**Allegation X – Force:** At § 87(2)(b) in the Bronx, Lieutenant Eric Dym used physical force against Derrick § 87(2)(b)

There is no BWC footage of this portion of the incident.

§ 87(2)(b) testified that when Lt. Dym pointed his gun at § 87(2)(b) placed his hands in the air. An unknown officer grabbed § 87(2)(b) arms and pulled them behind his back. § 87(2)(b) did not resist. The unknown officer put his leg in front of § 87(2)(b) leg, placed his hand on § 87(2)(b) upper torso, and pushed § 87(2)(b) forward. § 87(2)(b) tripped over the officer's leg and landed four or five feet from the front door. The unknown officer placed him into handcuffs. The unknown officer stood on top of § 87(2)(b) with his knee in the center of § 87(2)(b) back. The officer kept his knee on the back of § 87(2)(b) neck for approximately 30 seconds, making it harder to breathe. After approximately 30 seconds, § 87(2)(b) repeatedly said that he could not breathe. The same unknown officer said, "You tough right. Don't act like a bitch." Lt. Dym grabbed § 87(2)(b) by the shirt and lifted him off the ground.

§ 87(2)(b) testified that he saw while he was in the closet, he heard § 87(2)(b) yell for officers not to strike him. An officer said, "Shut up. Put your fucking hands behind your back." § 87(2)(b) yelled out, and another officer yelled, "Put your fucking hands behind your back." The way § 87(2)(b) yelled led § 87(2)(b) to believe that officers were striking him. He could hear Lt. Dym speak to § 87(2)(b) but was unsure whether Lt. Dym used the word "fuck" toward § 87(2)(b)

§ 87(2)(b) testified that everyone was inside § 87(2)(b) bedroom when officers opened the front door to the apartment and ordered everyone to come out. § 87(2)(b) walked out of the bedroom with his hands up and voluntarily got onto the ground. Lt. Dym and an unknown Hispanic male officer lifted § 87(2)(b) by the arms and dragged him forward chest-first until he was out of sight. § 87(2)(b) yelled that the officers were hurting his arms.

§ 87(2)(b) testified that when everyone hid in a bedroom, an officer asked, § 87(2)(b) are you here?" An officer instructed § 87(2)(b) to come outside with his hands up. § 87(2)(b) walked out of the bedroom and laid down chest-first on the floor. Officers grabbed his arms and dragged him away.

§ 87(2)(b) testified that he believed officers dragged § 87(2)(b) down a hallway but was unable to see who they were because he was focused on Lt. Dym, Sgt. Bautista, and a 5'7" tall Hispanic male officer, who all had their guns pointed at him.

Lt. Dym testified that when he first entered the apartment, he held his firearm in a position where it was not pointed at anyone. He immediately saw § 87(2)(b) and told him to come toward him. § 87(2)(b) walked toward Lt. Dym, lifted his hands, and placed them behind his back. § 87(2)(b) was under arrest for criminal trespass and smoking marijuana. Lt. Dym did not remember who placed § 87(2)(b) into handcuffs. He denied dragging § 87(2)(b) across the center of the kitchen. He did not make any physical contact with § 87(2)(b). He did not observe any officer put their knee against § 87(2)(b) neck. He did not hear any officer say, "Don't act like a bitch." He nor any other officers told § 87(2)(b) "Shut up. Put your fucking hands behind your back."

PO Johnson testified that although he was familiar with § 87(2)(b) and knew him to be a gang member, he did not recall seeing § 87(2)(b) in § 87(2)(b). He did not observe any officers use force or profanity against any occupants of § 87(2)(b).

PO Fernandez testified that although he knew who § 87(2)(b) was, he did not see him inside of this apartment. He did not hear an officer say, "Don't act like a bitch."

PO Joyce testified that at 2:00 a.m., he received a call from Lt. Dym, who told him to come to the § 87(2)(b) floor of § 87(2)(b). When he arrived on the § 87(2)(b) floor, an officer – he did not remember who – walked through the threshold of the door with § 87(2)(b) who was in handcuffs. The unknown officer told PO Joyce to take § 87(2)(b) to PSA-7, so he did. PO Joyce did not remember if § 87(2)(b) was injured. He did not recall if § 87(2)(b) complained that force was used against him. He did not recall whether Lt. Dym ever told him what happened inside § 87(2)(b). He did not remember if he was ever made aware of force used to arrest § 87(2)(b).

No TRI forms were completed regarding this incident (BR 37-39).

§ 87(2)(g)

§ 87(2)(g)

it is recommended that **Allegations T, U, V, and W** be closed as **Officers Unidentified**. § 87(2)(g)

it is recommended that **Allegation X** be **Unsubstantiated**.

**Allegation Y – Discourtesy: At § 87(2)(b) in the Bronx, Lieutenant Eric Dym spoke discourteously to § 87(2)(b)**

§ 87(2)(b) testified that he asked Sgt. Bautista why she wanted to arrest § 87(2)(b). Lt. Dym and an unknown Hispanic male officer pointed their guns at him. Lt. Dym told § 87(2)(b) to, "Shut the fuck up" and to mind his business. After § 87(2)(b) was escorted out of the room, Lt. Dym told § 87(2)(b) "You get the fuck up." § 87(2)(b) asked what was happening and Lt. Dym replied, "Shut the fuck up." Later in the incident, § 87(2)(b) asked if the officers could let everyone go. Lt. Dym replied, "Shut the fuck up." He said they would arrest him § 87(2)(b) for "obstruction of justice" along with everyone else. Lt. Dym added, "We don't give a fuck." § 87(2)(b) asked why they were taking § 87(2)(b). Lt. Dym replied that she had

opened her mouth too much and gave the officers a problem. § 87(2)(b) replied that this was not illegal. Lt. Dym replied, “Shut the fuck up.” § 87(2)(b) asked to see a warrant. Lt. Dym replied, “Shut the fuck up.” § 87(2)(b) asked for his shoes. Lt. Dym replied, “Fuck out of here. Shut the fuck up.”

§ 87(2)(b) testified that as she was on the ground, an officer – she did not know who – said, “Get the fuck up.”

Lt. Dym denied telling § 87(2)(b) to “shut the fuck up” or “get the fuck up.” He did not recall whether he used the word ‘fuck’ while he was inside § 87(2)(b)

PO Johnson did not recall any officer using profanity. PO Fernandez stated that so many people were speaking that he was unable to account for what any other officer said. PO Carrasquillo did not hear Lt. Dym use any profanity.

In CCRB Case #201004954, then-Sgt. Dym was alleged to have called a civilian a “motherfucker.” This allegation was unsubstantiated. In CCRB Case #201804541, Lt. Dym was captured on BWC shouting “Fuck you” at a civilian who was handcuffed in a police vehicle. In this case, PO Molina’s BWC footage depicted Lt. Dym telling either § 87(2)(b) or § 87(2)(b) “You better fucking figure it out.”

The NYPD mission includes a promise to treat every citizen with courtesy, professionalism, and respect. Patrol Guide Procedure 200-02 (BR 23). In Disciplinary Case #796247/04 (BR 24) the NYPD held that “when a police officer uses an otherwise impolite word during a stressful encounter where that officer is attempting to maintain control of the situation, the officer’s verbal slip does not rise to the level of actionable misconduct.” The exemption applied where an officer issued repeated instructions that a civilian ignored.

§ 87(2)(g)

§ 87(2)(b) it is recommended that **Allegation Y be Substantiated.**

**Allegation AB – Force: At § 87(2)(b) in the Bronx, officers used physical force against § 87(2)(b)**

PO Fernandez’s BWC (BR 08), beginning at 0:30, showed § 87(2)(b) being transported to the PSA-7 stationhouse, hyperventilating in the back of a police vehicle for several minutes.

§ 87(2)(b) testified that an officer grabbed her arms, twisted them behind her back, and pressed her face and chest into the dining room table. This officer was a Hispanic male in his 30’s with a brown skin complexion, backwards hat, and baggy jeans. He had a Hispanic-sounding name that she believed started with the letter ‘M’.

§ 87(2)(b) testified that Sgt. Bautista grabbed § 87(2)(b) by the back of the neck, grabbed her left arm with her left hand, and struck § 87(2)(b) head against the center of the kitchen table. It appeared that Sgt. Bautista struck § 87(2)(b) head as hard as she could. Sgt. Bautista held § 87(2)(b) left arm high up in the air.

§ 87(2)(b) testified that as he was pushed out of § 87(2)(b) bedroom, he observed Sgt. Bautista holding § 87(2)(b) chest-first over the kitchen table. Sgt. Bautista held § 87(2)(b)



§ 87(2)(b) hands high over her back.

§ 87(2)(b) testified that officers used excessive force against everyone in the apartment but her.

Lt. Dym testified that no force was used inside the apartment and that none of the civilians resisted.

PO Johnson testified that an officer, he did not know who, placed § 87(2)(b) into handcuffs in the dining area. He did not recall her being placed chest-first over a dining room table. He did not observe any officers use force or profanity toward any occupants of § 87(2)(b).

PO Fernandez testified that he did not remember any officer placing § 87(2)(b) chest-first over the kitchen table. He would not have seen this because he was focused on handcuffing § 87(2)(b).

The other officers interviewed denied being in a position to have observed these allegations. No TRI forms were completed regarding this incident. Sgt. Bautista has retired (BR 11).

PO Fernandez is a 5'9" Hispanic male (BR 33). PO Molina is a 5'7" Hispanic male (BR 34). PO Arroyo is a 5'8" tall Hispanic male (BR 35). PO Fernandez's BWC (BR 08), shows that PO Molina wore a flat-brim hat during this incident. PO Molina's BWC (BR 09), showed that another unknown officer wore a similar hat.

§ 87(2)(g)  
it is recommended that **Allegation AB** be closed as **Officers Unidentified**.

**Allegation AC – Force: At § 87(2)(b) in the Bronx, Police Officer Lorvin Fernandez used physical force against § 87(2)(b)**

**Allegation AD – Force: At § 87(2)(b) in the Bronx, Police Officer Forrester Johnson used physical force against § 87(2)(b)**

**Allegation AE – Force: At § 87(2)(b) in the Bronx, Police Officer Victor Carrasquillo used physical force against § 87(2)(b)**

**Allegation AF – Force: At § 87(2)(b) in the Bronx, Lieutenant Eric Dym used physical force against § 87(2)(b)**

**Allegation AG – Discourtesy: At § 87(2)(b) in the Bronx, Lieutenant Eric Dym spoke discourteously to § 87(2)(b)**

§ 87(2)(b) provided photographs of marks on § 87(2)(b) head and shoulders (BR 40-43). She and § 87(2)(b) stated that she took them in their home shortly after he was released from police custody.

§ 87(2)(b) testified that when the other civilians were removed from § 87(2)(b) bedroom, an unknown officer asked, "Where's § 87(2)(b) § 87(2)(b) said, "I don't know where he is." PO Carrasquillo opened the closet door, yelled that he had found § 87(2)(b) and pulled him by the arm out of the pile of laundry. § 87(2)(b) attempted to stand up. PO Carrasquillo (an approximately 6'2" tall Hispanic male officer in his 20's) told § 87(2)(b) to stop moving and punched him in the left side of his jaw. § 87(2)(b) fell and tried to stand up again. PO Carrasquillo punched § 87(2)(b) in the left shoulder. § 87(2)(b) fell onto § 87(2)(b) bed. PO Carrasquillo stood over him and placed his knee at the base of § 87(2)(b) neck where it met his back. He grabbed § 87(2)(b) arms and pulled them together. Lt. Dym ran into the room and pushed PO Carrasquillo off § 87(2)(b) who tried to stand up. Lt. Dym lifted his foot as if he were going to step on § 87(2)(b) face. § 87(2)(b)

§ 87(2)(b) turned his face to the side. Lt. Dym's shoe came down on the left side of § 87(2)(b) head, pinning his head to the ground and cutting his head above his left ear. § 87(2)(b) provided a photograph of the resulting injury to the CCRB (BR 43). PO Carrasquillo pulled § 87(2)(b) hands back and placed him into handcuffs. Lt. Dym said, "You're not a fucking tough guy now." § 87(2)(b) cried and told the officers to stop. Lt. Dym grabbed § 87(2)(b) head and struck it or "banged" it or "mushed" it against the closet door, then pushed § 87(2)(b) out of the bedroom.

§ 87(2)(b) testified that Lt. Dym entered § 87(2)(b) bedroom, then he and PO Johnson dragged § 87(2)(b) chest-first out of the bedroom. Lt. Dym punched § 87(2)(b) in the head. PO Johnson punched § 87(2)(b) in the back three times. § 87(2)(b) screamed that the officers were hurting him. Lt. Dym put his foot on § 87(2)(b) neck.

§ 87(2)(b) testified that as another officer walked § 87(2)(b) out of the apartment, he heard § 87(2)(b) yell "ow." § 87(2)(b) believed that Lt. Dym and Sgt. Bautista were beating up § 87(2)(b). Later, § 87(2)(b) told § 87(2)(b) that officers "beat him up" in the bedroom, and § 87(2)(b) observed small scrapes and scratches on § 87(2)(b) arms.

§ 87(2)(b) testified that Sgt. Bautista walked into § 87(2)(b) bedroom, where she heard § 87(2)(b) scream for officers to stop. She heard "tussling" for about four minutes.

§ 87(2)(b) testified that he was held in the kitchen when the officers searched through every room, and when it sounded as though they found § 87(2)(b) in a bedroom closet, he heard what sounded like officers beating up § 87(2)(b) repeatedly yelled for the officers to stop. Lt. Dym, Sgt. Bautista, and an unknown Hispanic male officer were in the bedroom where he believed § 87(2)(b) was being beaten.

Lt. Dym testified that he stood in the kitchen when he heard the clicking of handcuffs. He walked to the back bedroom, where PO Johnson and PO Carrasquillo had § 87(2)(b) in handcuffs. § 87(2)(b) had not resisted arrest. He had been hiding in either a bed or a closet. Lt. Dym walked into the room. § 87(2)(b) said, "Suck my dick," and did not say anything else. Lt. Dym did not use any force, and no one was injured. Lt. Dym was never made aware of an officer punching § 87(2)(b) in the face or shoulder. Lt. Dym denied placing his foot on § 87(2)(b) head. He denied pinning § 87(2)(b) head to the ground. He did not observe any injuries to § 87(2)(b) head. He denied telling § 87(2)(b) "You're not a fucking tough guy now." He did not run § 87(2)(b) head into the wall next to the closet.

PO Carrasquillo testified that he was assigned to work with PO Johnson during this incident. While standing outside, he heard a radio notification that people had been apprehended and ran directly to § 87(2)(b). He was on this floor for one to two minutes. He observed § 87(2)(b) in handcuffs by the front entrance to the apartment. He did not remember where they were standing. He did not know if PO Johnson was inside the apartment, or if PO Johnson was present when the arrests were made.

PO Johnson, § 87(2)(b) arresting officer, testified right when he entered § 87(2)(b) Lt. Dym called out that § 87(2)(b) had been hiding under a bed or in a closet. PO Johnson did not know who found him in a closet. He walked into § 87(2)(b) bedroom and observed § 87(2)(b) trying to hide under clothing. § 87(2)(b) exited the closet. PO Johnson, along with other officers who he could not identify, placed § 87(2)(b) hands behind his back and placed him into handcuffs. PO Johnson did not recall an officer punching § 87(2)(b) in the face. He did not recall whether Lt. Dym was present. He did not recall Lt. Dym placing his foot on § 87(2)(b) face. He did not observe any force other than the standard process of pulling § 87(2)(b) arms back and placing him into handcuffs. He did not recall § 87(2)(b)

§ 87(2)(b) head being struck against a wall. He did not observe any officers use force against any occupants of § 87(2)(b). He did not observe any officers use profanity inside of § 87(2)(b).

PO Fernandez testified that he and other officers – he could not remember who – went into § 87(2)(b) bedroom to look for § 87(2)(b). A male officer – he could not remember who – noticed a pile of blankets moving. The officer pulled the blankets away to reveal § 87(2)(b). The unknown officer said, “He’s here.” Officers – PO Fernandez did not know who – grabbed § 87(2)(b). All the officers, including PO Fernandez, tried to place § 87(2)(b) into handcuffs by grabbing his hands and trying to place his hands behind his back. § 87(2)(b) resisted by kicking and trying to punch the officers, and said to the officers, “I’m going to fucking kill you.” PO Fernandez joined in handcuffing § 87(2)(b) because one or two officers could not do it alone. Some officers held § 87(2)(b) legs so he would not kick them. PO Fernandez “didn’t notice” whether Lt. Dym punched § 87(2)(b) adding, “You might have to bring him [Lt. Dym] here (to the CCRB) and ask him that question.” He did not see an officer punch § 87(2)(b) in the back. He did remember punching § 87(2)(b) in the back. He did not see Lt. Dym place his foot on § 87(2)(b) head. He added that he was unable to see § 87(2)(b) head because he was concentrated on placing him into handcuffs. He did not see § 87(2)(b) head run into a wall and did not see a hole in the wall.

PO Carrasquillo’s MOS Photograph (BR 44) shows that he is a 6’3” tall Hispanic male.

No TRI form was generated regarding this incident. No BWC footage captured this interaction as required. § 87(2)(b) Arrest Report stated that no force was used.

In determining whether the use of force is reasonable, members of service should consider the actions taken by the subject, the immediacy of the perceived threat or harm to members of service, and whether the subject is actively resisting arrest. Patrol Guide Procedure 221-01 (BR 22).

Lt. Dym testified that he first observed § 87(2)(b) when he had already been handcuffed. PO Johnson testified that Lt. Dym was the first officer to find § 87(2)(b) calling for PO Johnson to join him in § 87(2)(b) bedroom. PO Carrasquillo denied being present for this portion of the incident, but Lt. Dym said that he was one of the officers who handcuffed § 87(2)(b). Both Lt. Dym and PO Johnson denied that § 87(2)(b) resisted at all. In contrast, PO Fernandez described § 87(2)(b) as actively resisting, threatening to kill the officers, and trying to punch and kick them. Civilians provided a consistent account of a physical struggle between § 87(2)(b) and officers. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

PO Carrasquillo fits the description of the officer § 87(2)(b) said punched him in the back and face. Lt. Dym testified that PO Carrasquillo was in the room next to PO Johnson when § 87(2)(b) was placed into handcuffs. PO Carrasquillo denied being in the apartment during this portion of the incident. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)



§ 87(2)(g)

it is recommended the Allegations AC and AD be **Unsubstantiated.** § 87(2)(g)

it is recommended that Allegation AE be **Substantiated.** As Lt. Dym held his foot against § 87(2)(b) face, said, “You’re not a fucking tough guy now,” and struck § 87(2)(b) head against the bedroom wall. § 87(2)(g) it is recommended that Allegations AF and AG be **Substantiated.**

**Allegation AH – Discourtesy: At § 87(2)(b) in the Bronx, an officer spoke discourteously to § 87(2)(b)**

**Allegation AI – Force: At § 87(2)(b) in the Bronx, an officer used force against § 87(2)(b)**

**Allegation AJ – Force: At § 87(2)(b) in the Bronx, an officer used a chokehold against § 87(2)(b)**

**Allegation AK – Force: At § 87(2)(b) in the Bronx, an officer restricted § 87(2)(b) breathing.**

**Allegation AL – Force: At § 87(2)(b) in the Bronx, Lieutenant Eric Dym used physical force against § 87(2)(b)**

**Allegation AN – Discourtesy: At § 87(2)(b) in the Bronx, Lieutenant Eric Dym spoke discourteously to § 87(2)(b)**

§ 87(2)(b) testified that Lt. Dym escorted him out of his bedroom and placed him in a chair in the living room. PO Johnson and approximately four to six additional officers were present. The officers searched through every room in the apartment, and after approximately two minutes, it sounded as though they found § 87(2)(b) in a bedroom closet. He heard what sounded like officers beating up § 87(2)(b) and repeatedly yelled for the officers to stop. An approximately 5’7” tall Hispanic male in his mid-20’s to late 30’s leaned out of the bedroom and sarcastically yelled, “So you didn’t see him?” The same officer ran out of the bedroom and with his right hand outstretched, grabbed § 87(2)(b) by the throat, restricting his ability to breathe, and pushed him back in his chair. The back of § 87(2)(b) head hit the floor. The Hispanic male officer continued to grasp § 87(2)(b) neck for one to two minutes and told § 87(2)(b) that he had lied to the officers and that he had known that § 87(2)(b) was in the closet. His hand never completely restricted § 87(2)(b) breathing but it made him gag. The Hispanic male officer moved his fist approximately three inches from § 87(2)(b) left cheek and punched him in the face. Lt. Dym and Sgt. Bautista stood next to § 87(2)(b) and each kicked him in the ribs one time. The Hispanic male officer punched § 87(2)(b) in the side multiple times – he did not remember how many. When he stopped punching, he let go of § 87(2)(b) throat. Lt. Dym placed § 87(2)(b) into handcuffs. At the precinct stationhouse, § 87(2)(b) requested to see a doctor for pain to his ribs and face. He was transported to § 87(2)(b) Hospital. As he was being treated, an officer said that if he stayed too long, he would not be able to see a judge until the following day. § 87(2)(b) said that he did not want to miss another day of work and was transported to Bronx Criminal Court without completing his medical evaluation.

§ 87(2)(b) testified that as he was escorted from § 87(2)(b) bedroom to the living room, Lt. Dym ran toward § 87(2)(b) and said, “I thought you said he wasn’t here. What type of fucking father are you?” § 87(2)(b) replied that he did not have anything to do with what happened. Lt. Dym told § 87(2)(b) to shut up. As § 87(2)(b) was looking away, he heard what sounded like Lt. Dym slapping § 87(2)(b) across the face. Lt. Dym grabbed § 87(2)(b) by the shoulders and threw him to the floor chest-first. § 87(2)(b) complained that he was being treated like a child.

§ 87(2)(b) testified that as Lt. Dym and Sgt. Bautista were in the back room, § 87(2)(b) asked what was going on. A short Hispanic male officer told § 87(2)(b) to “Shut the fuck



up” and slapped him in the face with an open hand. An officer then escorted § 87(2)(b) out of the apartment.

§ 87(2)(b) testified that officers escorted § 87(2)(b) from the bedroom to a chair in the kitchen. As § 87(2)(b) was in the bedroom screaming for officers to stop, § 87(2)(b) yelled that the officers should not hurt him. A Hispanic male in his 30’s, whose name she believed started with the letter ‘M’, ran out of the bedroom, pointed his finger in § 87(2)(b) face, and said, “You fucking knew he was in there.” § 87(2)(b) leaned back and put his hands up. The Hispanic male officer grabbed § 87(2)(b) by his right ankle, pulled his ankle toward his own body and “slammed” § 87(2)(b) off the chair by pulling him forward. The chair fell backward, and § 87(2)(b) landed on the floor on his back. The Hispanic male officer turned § 87(2)(b) onto his stomach and placed him into handcuffs. § 87(2)(b) yelled in pain and appeared to have hurt his back. § 87(2)(b) began to scream and cry and asked the Hispanic male officer to stop.

§ 87(2)(b) testified that officers used excessive force against § 87(2)(b) but did not elaborate as to what specific force was used against him.

§ 87(2)(a)

Lt. Dym testified that after § 87(2)(b) was handcuffed, he spoke with § 87(2)(b) who told him that § 87(2)(b) was not present. He did not recall § 87(2)(b) sitting in the kitchen handcuffed. He denied saying, “I thought you said he wasn’t in here. What type of fucking father are you,” denied throwing § 87(2)(b) to the floor, denied that an officer struck § 87(2)(b) face, denied that an officer grabbed § 87(2)(b) by the throat, pressing him into the floor, denied that an officer punched § 87(2)(b) in the face, and denied that he kicked § 87(2)(b).

PO Johnson testified that he did not remember seeing § 87(2)(b) inside § 87(2)(b). There was “probably” an adult in the apartment but could not recall whether they were detained. He did not recall if Lt. Dym said to § 87(2)(b) “I thought you said he wasn’t here. What type of fucking father are you?” He did not observe any officers use profanity or force inside of § 87(2)(b).

PO Fernandez testified that he, along with other officers he could not remember, seated § 87(2)(b) in a chair at the kitchen table. He did not see an officer strike § 87(2)(b) across the face. He did not see an officer pull § 87(2)(b) off a chair onto the ground. He did not remember an officer telling § 87(2)(b) “you fucking knew he was in there.”

PO Joyce testified that although he was § 87(2)(b) arresting officer, and that he had no memory of § 87(2)(b) being transported to the hospital. He did not remember why § 87(2)(b) was transported to the hospital, if he was injured, or whether force was used during his arrest.

PO Molina testified that he was not aware that § 87(2)(b) was arrested or hospitalized. Despite having a memo book entry that noted he was present for this incident, PO Arroyo denied any recollection of what took place.

No officer was able to testify as to why § 87(2)(b) was transported to § 87(2)(b) Hospital.

PO Joyce’s memo book noted that at on August 18, 2019, at 8:45 a.m., “PO McCralse” transported § 87(2)(b) to the hospital. The PSA-7 Command Log (BR 46) notes that § 87(2)(b) was transported to the hospital by PO McCallister.

§ 87(2)(a) – PHL 18(6)

§ 87(2)(b) he was admitted to the hospital for back pain, pain to his left ribs, and pain to his face. § 87(2)(a) – PHL 18(6) he reported that he was fine, wanted to go, and refused any evaluation.

No Medical Treatment of Prisoner Report or TRI was prepared for § 87(2)(b) (BR 38, 47).

PO Fernandez is a 5'9" Hispanic male (BR 33). PO Molina is a 5'7" Hispanic male (BR 34). PO Arroyo is a 5'8" tall Hispanic male (BR 35). PO Fernandez's BWC (BR 08), shows that PO Molina wore a flat-brim hat during this incident. PO Molina's BWC (BR 09), showed that another unknown officer wore a similar hat.

§ 87(2)(b) § 87(2)(b) and § 87(2)(b) all testified that a Hispanic male used force against § 87(2)(b) § 87(2)(g)

§ 87(2)(g)

§ 87(2)(b) it is recommended that **Allegations AJ, AK, AL, and AM** be closed as **Officers Unidentified**. § 87(2)(g)

it is recommended that **Allegations AN and AP** be **Unsubstantiated**.

**Allegation AP – Abuse of Authority: At § 87(2)(b) in the Bronx,**

**Lieutenant Eric Dym arrested § 87(2)(b)**

**Allegation AQ – Abuse of Authority: At § 87(2)(b) in the Bronx,**

**Lieutenant Eric Dym arrested § 87(2)(b)**

**Allegation AR – Abuse of Authority: At § 87(2)(b) in the Bronx,**

**Lieutenant Eric Dym issued a summons to § 87(2)(b)**

Lt. Dym testified that he suspected that § 87(2)(b) and § 87(2)(b) had been in the apartment downstairs. However, he did not believe that he had probable cause to arrest either of them for trespassing. He believed that he had probable cause to arrest them for other reasons, but could not recall what those reasons were. § 87(2)(b) was arrested because he had known that § 87(2)(b) was hiding in the apartment, and therefore he had been harboring a wanted person. § 87(2)(b) had known that § 87(2)(b) was inside a vacant apartment, but Lt. Dym did not know how the officers established this.

PO Joyce was the arresting officer for § 87(2)(b) and wrote § 87(2)(b) summons. He did not witness their arrests. Lt. Dym told PO Joyce precisely what to write on the arrest paperwork. § 87(2)(b) summons stated that "Officers observed § 87(2)(b) in apartment with intent to create a hazardous condition, not allowing officers to effect arrest."

PO Johnson testified that Lt. Dym instructed him to arrest § 87(2)(b) for disorderly conduct. He could not recall why he arrested her, or what actions she took to constitute disorderly conduct. Lt. Dym and either PO Joyce or PO Carrasquillo assisted PO Johnson with arrest processing and explained why each person had been arrested.

As per the Bronx Criminal Summons Section, the summons issued to § 87(2)(b) was dismissed § 87(2)(b)

§ 87(2)(b) The Bronx DA's office declined to prosecute § 87(2)(b) arrest, noting there was not sufficient evidence to prove the defendant committed the crime (BR 01). According to the Command Log (BR 46), § 87(2)(b) was released without being summonsed or arrested.

Arrest #§ 87(2)(b) (BR 48), notes that § 87(2)(b) committed obstruction of governmental administration (OGA) by hiding wanted perpetrators for a past crime inside apartment. He refused to render aide to officers. He endangered the welfare of children by knowingly allowing them to leave household after curfew and remain unlawfully in vacant apartment.

A person is guilty of endangering the welfare of a child when he knowingly acts in a manner likely to be injurious to a child less than 17 years old. NY Penal Law §260.10 (BR 49). A person is guilty of OGA when he intentionally obstructs, impairs, or perverts the administration of law to prevent a public servant from performing an official function by means of interference. NY Penal Law §195.05 (BR 50). The Supreme Court of New York ruled that a person who refused to disclose the location of a firearm in their apartment was not guilty of OGA because these facts did not satisfy the elements of the statute. In re Kezzia T. 273 A.D. 2d 13 (2000) (BR 51). OGA must be in part physical. People v. Case. 42 N.Y.2d 98 (1977) (BR 52). A person is guilty of disorderly conduct when, with intent to cause public inconvenience, they fight, make unreasonable noise, uses obscene language in a public place, disturbs a lawful assembly, obstructs traffic, congregates in a public place and refuses to disperse, or creates a hazardous or physical offensive condition by an act which serves no legitimate purpose. NY Penal Law §240.20 (BR 53). To arrest someone, an officer must have reasonable cause to believe they have committed an offense. Patrol Guide Procedure 208-01 (BR 54).

As per Lt. Dym's direct instructions, § 87(2)(b) was arrested for acting in a manner injurious to a child. § 87(2)(b) was § 87(2)(b) only child who was allegedly outside of the household and in a vacant apartment. At the time of the incident, § 87(2)(b) was 18 years old, § 87(2)(g)

§ 87(2)(b) No officer testified to § 87(2)(b) doing anything to constitute disorderly conduct and there was no evidence to support this claim. § 87(2)(g)

§ 87(2)(b) it is recommended that **Allegations AP, AQ, and AR be Substantiated.**

**Allegation P – Abuse of Authority: Allegation R – Discourtesy: At § 87(2)(b) in the Bronx, Sergeant Natalie Bautista pointed her gun at § 87(2)(b)**

**Allegation Z – Discourtesy: At § 87(2)(b) in the Bronx, Sergeant Natalie Bautista spoke discourteously to § 87(2)(b)**

**Allegation AA – Discourtesy: At § 87(2)(b) in the Bronx, Sergeant Natalie Bautista spoke discourteously to § 87(2)(b)**

**Allegation AM – Force: At § 87(2)(b) in the Bronx, Sergeant Natalie Bautista used physical force against § 87(2)(b)**

**Allegation AO – Discourtesy: At § 87(2)(b) in the Bronx, Sergeant Natalie Bautista spoke discourteously to § 87(2)(b)**

**Allegation AS – Discourtesy: At § 87(2)(b) in the Bronx, Sergeant Natalie Bautista spoke discourteously to § 87(2)(b)**

Various civilians alleged that Sgt. Bautista took the following actions: pointed her gun at § 87(2)(b) and used various expletives towards § 87(2)(b) and § 87(2)(b). It was also alleged that she kicked § 87(2)(b) in the ribs. § 87(2)(g) it is recommended that **Allegations P, Z, AA, AM, AO, and AS be closed as Miscellaneous – Subject Retired.**



**Allegation AT – Abuse of Authority: At § 87(2)(b) in the Bronx, officers damaged § 87(2)(b) property.**

§ 87(2)(b) testified after officers left § 87(2)(b) she walked upstairs and observed that the mirrors to the front of the left door had been broken. The fan in § 87(2)(b) room was knocked to the floor and broken. § 87(2)(b) corroborated this testimony.

No officers testified observing broken mirrors or knew which officers were last to leave § 87(2)(b)

§ 87(2)(g)

it is recommended that **Allegation AT** be closed as **Officer(s) Unidentified**.

**Allegation AU – Discourtesy: At the PSA 7 stationhouse, Police Officer Hammer Colon spoke discourteously to § 87(2)(b).**

PO Hammer Colon's BWC footage (BR 07), beginning at 01:35, showed § 87(2)(b) ask PO Colon to loosen his handcuffed. PO Colon replied, "You ain't my fucking dad, man." § 87(2)(b) continued to complain, and PO Colon said, "Nah, man. You can't tell me what the fuck to do though." At 05:00, PO Colon asked § 87(2)(b) if he had any tattoos. § 87(2)(b) replied, "Do you see any tattoos?" PO Colon replied, "Can I see inside your shirt? Tattoo on your fucking leg? I can't see that shit." At 07:10 PO Colon said, "I got to turn this shit around to put this shit backwards, alright?" PO Colon tried to take off § 87(2)(b) handcuffs. § 87(2)(b) yelled at PO Colon for lifting his fist the wrong way. PO Colon replied, "What the fuck you want me to do? Work with me bro. I ain't do shit to you." At 08:55 § 87(2)(b) refused to take off his socks. PO Colon replied, "Why are you making shit so hard?" He added, "You make shit hard for no reason." At 10:10 § 87(2)(b) refused to be patted down. PO Colon said, "You're making shit hard for no reason."

PO Colon testified that he made these statements to make § 87(2)(b) understand that he could not make demands about his handcuffs, to show that he did not know where § 87(2)(b) tattoos were, and to get through the process because § 87(2)(b) was being difficult.

The NYPD mission includes a promise to treat every citizen with courtesy, professionalism, and respect. Patrol Guide Procedure 200-02 (BR 23). In Disciplinary Case #796247/04 (BR 24) the NYPD held that "when a police officer uses an otherwise impolite word during a stressful encounter where that officer is attempting to maintain control of the situation, the officer's verbal slip does not rise to the level of actionable misconduct."

§ 87(2)(b) was in handcuffs and PO Colon was in control of the situation, § 87(2)(g)

It is recommended that **Allegation AU** be **Substantiated**.

**Allegation AV – Abuse of Authority: At the PSA 7 stationhouse, Lieutenant Eric Dym failed to provide § 87(2)(b) with a business card.**

**Allegation AW – Abuse of Authority: At the PSA 7 stationhouse, Police Officer Brian Greige failed to provide § 87(2)(b) with a business card.**

§ 87(2)(b) testified that at the PSA-7 stationhouse, she approached an officer whose shield said 'Dym,' looked at his shield, and asked for his business card. He replied, "Okay," walked into the back of the stationhouse, and did not return. § 87(2)(b) observed PO Greige and asked if he had been in her apartment. He replied that he had been inside. § 87(2)(b) asked for his business card, which he provided. His command and phone number were not written on the business card. § 87(2)(b) provided a photograph of PO Greige's business card (BR 55), with the precinct and shield number fields left blank.



Lt. Dym did not recall speaking to § 87(2)(b). He did not recall anyone asking for his business card. He did not provide anyone with a business card.

PO Greaight testified that he did not remember speaking with § 87(2)(b) or any other parents or guardians inside the PSA-7 stationhouse. He denied ever having been in her apartment.

Any officer shall offer a business card to any person requesting identifying information. Any business cards shall include a space to write in the command of such officer, which shall be indicated. New York Administrative Code Law 14-174 (BR 56).

§ 87(2)(g)  
it is recommended that **Allegations AV and AW be Substantiated.**

**Allegation AX – Untruthful Statement: Lieutenant Eric Dym provided a false official statement to the CCRB.**

It is undisputed among § 87(2)(b) that officers went door-to-door throughout § 87(2)(b) searching for § 87(2)(b) and that Lt. Dym knocked out the peephole and broke open the front door. § 87(2)(b) corroborated that officers broke open the front door. § 87(2)(b) and § 87(2)(b) both testified that shortly after this incident, the door to § 87(2)(b) appeared to have been broken open. § 87(2)(b) provided photo evidence of the damage (BR 25-30).

Lt. Dym testified that he told PO Perez to come to § 87(2)(b). Upon arrival, PO Perez told Lt. Dym that he had just spoken to a representative at § 87(2)(b) who said that he knew for a fact that § 87(2)(b) was inside of § 87(2)(b) at that time. Lt. Dym requested that he not provide the identity of the § 87(2)(b) employee who provided this information because the employee worked on site and was scared to speak for fear of retaliation. This employee was the same individual whose name was on the redacted criminal court complaints for trespassing. When Lt. Dym arrived at § 87(2)(b) the door was open, and he entered based on exigent circumstances as he heard what he believed was the sound of the racking of a firearm. He denied knocking the door open.

PO Fernandez testified that officers gathered around the door to § 87(2)(b) that officers kicked at the door and were “knocking on the door for a little while” before entering.

PO Perez testified that he never provided Lt. Dym with any information to indicate that § 87(2)(b) was inside § 87(2)(b). Their communication was limited to a discussion about § 87(2)(b) not § 87(2)(b). The door to § 87(2)(b) was closed when PO Perez did a vertical patrol of the building shortly before officers entered. He did not speak to § 87(2)(b) of § 87(2)(b) about this incident.

§ 87(2)(b) was the § 87(2)(b) representative whose name was redacted from § 87(2)(b) criminal court complaint for trespassing. He testified that he did not speak to any MOS regarding this incident.

A false statement is a statement that a member of service knows to be untrue, which is material to the outcome of an investigation, proceeding, or other matter in connection with which the statement is made. Administrative Guide Procedure 304-10 (BR 57).

The reason Lt. Dym went to § 87(2)(b) apartment was material to outcome of this investigation. Lt. Dym testified that the reason he went to § 87(2)(b) to arrest § 87(2)(b) was because PO Perez communicated with a member of § 87(2)(b). PO Perez denied providing Lt. Dym with any information to indicate that § 87(2)(b) was inside § 87(2)(b). Lt. Dym also testified that the door to § 87(2)(b) was open and that he walked inside because he heard a firearm cocking. In contrast, PO Perez testified that the door the § 87(2)(b) was closed shortly before officers entered, and PO Fernandez testified that officers knocked on and kicked at the door before going inside. All civilian testimony and photographic evidence suggest that officers broke open the door to § 87(2)(b). No officers provided testimony that corroborated Lt. Dym's account of entering § 87(2)(b).

§ 87(2)(g)

It is therefore recommended that **Allegation AX** be **Substantiated**.

**Allegation AY – Untruthful Statement: Lieutenant Eric Dym provided a false official statement to the CCRB.**

Lt. Dym testified that he did not recall if Sgt. Bautista, PO Johnson, or PO Joyce notified him that their BWCs were dead, that he did not recall why PO Johnson did not have any BWC footage of this arrest, and that he did not supervise PO Joyce submitting the Body Camera Checklist to the Bronx DA's office. § 87(2)(g)

PO Fernandez made a 42-second-long recording (BR 04) of this inside of § 87(2)(b). In it, Lt. Dym pointed to "weed" and walked into the kitchen. PO Johnson's first of two recordings was one minute and ten seconds long (BR 03). In it, he covered the camera with his hand for the first 26 seconds. He walked into § 87(2)(b), pointed the camera at a pile of marijuana on a table propping the door open, recorded plastic bags, cups, a wallet, and other debris in the kitchen. The second recording was 20 seconds long (BR 05) and showed Lt. Dym grabbed a wallet on the counter and say, "He left this."

§ 87(2)(b) and § 87(2)(b) alleged that after they were dragged in front the fire escape, officers placed § 87(2)(b) and § 87(2)(b) phones and wallets in the § 87(2)(b) kitchen and recorded these items as if § 87(2)(b) and § 87(2)(b) had been inside the apartment.

§ 87(2)(b) testified that at the PSA-7 stationhouse, Lt. Dym told § 87(2)(b) and § 87(2)(b) "If you disrespect one of my cops, we're gonna turn this whole building upside down to find you." She overheard an officer tell § 87(2)(b) "You show your area to my female cop, we're gonna turn this place upside down." § 87(2)(b) testified that at the stationhouse, Lt. Dym approached § 87(2)(b) in his cell and said that god had seen what he had done.

PO Johnson testified that before he arrived at § 87(2)(b) he notified Lt. Dym that his BWC was dead. His recordings were from tests to check whether his BWC was recording, but he did not know the tests had worked. He denied seeing Lt. Dym in these recordings. Lt. Dym assigned PO Johnson the arrests of § 87(2)(b), § 87(2)(b), § 87(2)(b), and § 87(2)(b). Either PO Joyce or PO Carrasquillo helped PO Johnson with the arrest paperwork. He did not attach any BWC footage to the arrests because he was not aware that PO Molina had footage that depicted the incident. Although there were ten to 15 officers present during this incident, PO Johnson did not check with any of them to see whether they had BWC footage. He did not know about any other officers' BWCs dying prior to this incident. Lt. Dym did not tell him that his BWC died. He added that other officers needed to proactively send their footage and their memo book to the DA's office.

if their footage depicted an arrest.

PO Fernandez testified that Lt. Dym told him to make his recording to create a record of § 87(2)(b) being unoccupied.

PO Joyce testified that he called Lt. Dym at 11:15 p.m. to notify him that his BWC was dead. At 11:30 p.m., Lt. Dym called him and told him to come to § 87(2)(b) in the Bronx. At 2:00 a.m., Lt. Dym assigned the arrests of § 87(2)(b) and § 87(2)(b) and the summons of § 87(2)(b) to PO Joyce. Lt. Dym told PO Joyce what information to put on the arrests and summons.

Sgt. Bautista retired from the NYPD on May 29, 2021 (BR 11), before the investigation could interview her. Her memo book noted that at 11:10 p.m. she noticed her BWC with a green light and that the battery was dead (BR 12). However, as per the manuals for both Vievu and Axon BWC models, a green light indicates that a BWC is powered on and functioning (BR 13-16).

Lt. Dym testified that he drove past § 87(2)(b) several times over the course of the evening of August 17, 2019. At 11:00 p.m., his BWC died. He was not required to notify a supervisor because he was the supervisor. Other BWCs died during this incident. Multiple officers – he could not recall which – notified Lt. Dym that their BWCs were dead. He did not recall if Sgt. Bautista, PO Johnson, or PO Joyce notified him that their BWCs were dead. The reason there was no BWC footage of this incident was because PSA-7 was having a lot of issues with cameras and batteries that were not holding their charge. Lt. Dym had made numerous calls to the Information Technology Bureau (ITB) to have cameras replaced and fixed because there were constant problems with batteries being defective, or cameras not recording properly. Lt. Dym was presented with PO Johnson's BWC footage of the incident, and he testified that he instructed PO Johnson to take the video for evidentiary purposes, to document that the apartment was vacant. He was presented with the BWC checklist for § 87(2)(b) arrest, which noted that all BWCs were dead. Lt. Dym denied that he supervised PO Joyce submitting this paperwork to the Bronx DA's office. He had never seen this paperwork before. He was not aware of any paperwork that was submitted that said all BWC was dead over the course of these arrests. He did not recall why PO Johnson did not have any footage of this incident.

The arrests of § 87(2)(b) and § 87(2)(b) incorrectly noted that there was no BWC footage (BR 20, 21). PO Joyce's memo book (BR 58) notes that he assisted PO Johnson with his arrest.

At 3:19 p.m. on August 17, 2019, the PSA-7 desk officer made a Command Log entry that stated, "All body cameras are operational and assigned to MOS." From that time through the end of August 18, 2019, there were no command log entries regarding BWC malfunctions (BR 46).

PO Joyce submitted a BWC checklist to the Bronx DA's office (BR 01) for § 87(2)(b) arrest. It listed he, PO Johnson, and Lt. Dym as officers present and said, "All Body cameras were dead."

A records request to the ITB showed that Lt. Dym did not create any IT tickets for body-worn camera issues from May 19, 2019, to November 19, 2019, and that ITB did not have any information regarding systemic BWC malfunctions from May 19, 2019, to November 19, 2019 (BR 59).

Aside from the memo books of Lt. Dym, Sgt. Bautista, and PO Joyce between 11:00 p.m. and 11:15 p.m. on August 17, 2019, there are no records of any officer's BWC dying in PSA-7 from August 17, 2019, to the end of August 18, 2019, not in the Command Log, the memo books of PO Colon, PO Navarro, PO Greaike, PO Johnson, PO Fernandez, PO Carrasquillo, PO Molina, or the seven other memo books received in this case.

A false statement is a statement that a member of service knows to be untrue, which is material to the



outcome of an investigation, proceeding, or other matter in connection with which the statement is made. Administrative Guide Procedure 304-10 (BR 57).

None of the approximately 20 officers under Lt. Dym's command at § 87(2)(b) took BWC videos as required by the Patrol Guide. PO Johnson testified that he told Lt. Dym that his BWC was dead, but Lt. Dym, by his own account, instructed PO Johnson to record the inside of § 87(2)(b) hours later. Lt. Dym instructed PO Fernandez and PO Johnson to record the interior of the § 87(2)(b) for "evidentiary purposes," demonstrating that Lt. Dym was already aware officers were not otherwise recording when required. Lt. Dym testified that his BWC died at 11:00 p.m., Sgt. Bautista falsely wrote that her BWC died at 11:10 p.m., PO Joyce notified Lt. Dym at 11:15 P.M. that his BWC was dead, and PO Johnson testified that he told Lt. Dym that his BWC was dead, although it was not. When processing the arrests in this incident, PO Johnson did not check to see whether any other officer had BWC footage of the arrests despite the "many" units that were present. PO Joyce, who was instructed by Lt. Dym as to what to put on the arrest reports, wrote to the Bronx DA's office stating that all the cameras were dead. Based on this information, the investigation determined that during this incident Lt. Dym instructed officers when and when not to record, preventing video documentation during moments in which misconduct occurred. § 87(2)(g)

it is recommended that  
**Allegation AY be Substantiated.**

**Allegation AZ: Untruthful Statement – Police Officer Forrester Johnson provided a false official statement to the CCRB.**

**Allegation BA: Untruthful Statement – Police Officer Forrester Johnson provided a misleading official statement to the CCRB.**

In his initial interview, PO Johnson testified that he heard yelling coming from inside § 87(2)(b) and ran into a side entrance, up a stairwell, to § 87(2)(b) where "people were running everywhere." PO Johnson looked inside § 87(2)(b) saw people being handcuffed, and then ran to the § 87(2)(b) floor. PO Johnson omitted any testimony about entering § 87(2)(b) pulling § 87(2)(b) and § 87(2)(b) into the apartment through the window, and being one of the officers to help handcuff them. During PO Johnson's second CCRB interview, PO Johnson denied entering the building via the fire escape and through the apartment window of § 87(2)(b). When asked whether any officer entered the apartment through the fire escape, PO Johnson replied, "I can't recall."

Lt. Dym testified that he and PO Johnson entered § 87(2)(b) by climbing into the window of § 87(2)(b).

A misleading statement is intended to misdirect the fact finder and materially alter the narrative by intentionally omitting a material fact or facts. A material fact is a significant fact that is essential to the determination of the issue and the suppression, omission, or alteration of such fact would reasonably result in a different decision or outcome. A false statement is a statement that a member of service knows to be untrue, which is material to the outcome of an investigation, proceeding, or other matter in connection with which the statement is made. Administrative Guide Procedure 304-10 (BR 57).



In his initial statement, PO Johnson omitted the fact that he went into § 87(2)(b) pulled § 87(2)(b) and § 87(2)(b) in through the window, and placed them into handcuffs. § 87(2)(g) In his second statement, PO Johnson denied that he entered the § 87(2)(b) through the window. Lt. Dym testified that PO Johnson entered § 87(2)(b) through the window. § 87(2)(g)

it is recommended that **Allegations AZ and BA be Substantiated.**

**Allegation BB – Untruthful Statement: Police Officer Victor Carrasquillo provided a misleading official statement to the CCRB.**

§ 87(2)(b) testified that the officer who found him hiding in the closet and punched him in the face was an approximately 6'2" tall Hispanic male in his 20's. The investigation identified this officer as PO Carrasquillo.

PO Carrasquillo testified that he while he stood outside § 87(2)(b) he received a radio notification that individuals had been apprehended on the § 87(2)(b) floor. He was on the § 87(2)(b) floor for one to two minutes. He observed § 87(2)(b) and § 87(2)(b) standing by the front entrance to the apartment. He did not remember their demeanors. He did not remember whether PO Johnson was in the apartment. Lt. Dym and Sgt. Bautista told him to go back on patrol, so he got into his vehicle and resumed patrol with PO Johnson and PO Joyce. He denied being aware of why officers entered the § 87(2)(b) floor apartment. PO Carrasquillo's BWC was not turned on because he never interacted with anyone and everything was done when he arrived on the § 87(2)(b) floor.

Lt. Dym testified that PO Carrasquillo was next to PO Johnson as one of them handcuffed § 87(2)(b) in § 87(2)(b) bedroom. PO Carrasquillo and PO Johnson testified that they were assigned partners during this incident.

PO Carrasquillo's MOS Photograph (BR 44) showed that he was a 6'3" tall Hispanic male, 28 years old at the time of the incident.

A misleading statement is intended to misdirect the fact finder and materially alter the narrative by intentionally omitting a material fact or facts. A material fact is a significant fact that is essential to the determination of the issue and the suppression, omission, or alteration of such fact would reasonably result in a different decision or outcome. Administrative Guide 304-10 (BR 57).

Determining which officers were involved in handcuffing § 87(2)(b) was material to assessing which officers used force, the extent of such force, and whether such force was permissible.

§ 87(2)(b) PO Carrasquillo omitted the fact that he was present in § 87(2)(b) bedroom when § 87(2)(b) was arrested, § 87(2)(g)

it is recommended that **Allegations BB be Substantiated.**

**Allegation BC – Untruthful Statement: Police Officer Manolin Molina provided a misleading official statement to the CCRB.**

PO Molina's BWC footage (BR 09), beginning at 0:00, showed him as Lt. Dym and PO Johnson arrested § 87(2)(b) and § 87(2)(b) inside § 87(2)(b) at 1:05 a.m. PO Fernandez's BWC footage (BR 08), beginning at 0:30, shows he and PO Molina transport § 87(2)(b) to the PSA-7 stationhouse, beginning at 2:04 a.m. At 7:00 into the video, PO Fernandez told PO Molina, regarding § 87(2)(b) "He was there too. He was like - right next to his father. So they were hiding him."

Several civilians described an officer fitting PO Molina's description inside of § 87(2)(b) who participated in the use of force.

PO Molina testified that he did not have a memo book entry for this incident because when, between 2:00 a.m. and 3:00 a.m., Lt. Dym called and it sounded urgent. He was assigned to work with PO Fernandez and they responded to the incident together. PO Molina stood in front of the building for "a while" before entering § 87(2)(b). He denied being aware of any of the events that transpired inside § 87(2)(b).

PO Fernandez testified that he and PO Molina arrived at 12:20 a.m. and that both of them were at § 87(2)(b) until they transported § 87(2)(b) to the PSA-7 stationhouse at 1:52 a.m.

PO Fernandez's memo book (BR 61) showed that he and PO Molina arrived at 12:20 a.m. and left at 1:52 a.m.

PO Molina's memo book (BR 60) showed that at 12:05 a.m. he was '98,' or 'Resuming Patrol.' At 1:00 a.m. he made an entry that he was '75D,' or conducting a directed visibility patrol, at 'Patt/Mott,' an abbreviation of NYCHA's Patterson Houses in Mott Haven. At 2:30 a.m. he noted '98' again.

The Patterson Houses in Mott Haven are several blocks away from § 87(2)(b) (BR 62)

A misleading statement is intended to misdirect the fact finder and materially alter the narrative by intentionally omitting a material fact or facts. A material fact is a significant fact that is essential to the determination of the issue and the suppression, omission, or alteration of such fact would reasonably result in a different decision or outcome. Administrative Guide Procedure 304-10 (BR 57).

PO Molina made a memo book at 1:00 a.m. noting he was in the Patterson Houses, several blocks away. However, PO Fernandez testified that PO Molina was with him at § 87(2)(b) from 12:20 a.m. through 1:52 a.m., when they left together. During his CCRB interview, PO Molina testified that this incident happened between 2:00 a.m. or 3:00 a.m., and that he stood in front of § 87(2)(b) for "a while". He did not make a memo book entry because he did not have time.

§ 87(2)(g)  
[REDACTED]

§ 87(2)(g)  
[REDACTED] it is recommended that  
**Allegation BC be Substantiated.**

§ 87(2)(g), § 87(4-b)  
[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

§ 87(2)(g), § 87(4-b)

§ 87(2)(g), § 87(4-b)

§ 87(2)(g), § 87(4-b)

#### **Civilian and Officer CCRB Histories**

- This is the first CCRB complaint to which § 87(2)(b) § 87(2)(b) § 87(2)(b) § 87(2)(b) or § 87(2)(b) have been a party.
- § 87(2)(b)
- Lt. Dym has been a member-of-service for 17 years and has been a subject in 29 cases and 95 allegations, of which 14 substantiated.
  - Case #201114190 involved a substantiated allegation of Abuse of Authority – Stop against Lt. Dym. The Board recommended Command Discipline and the NYPD did not impose discipline because the case passed the statute of limitations.
  - Case #201804541 involved a substantiated allegation of Discourtesy – Word against Lt. Dym. The Board recommended Command Discipline and the NYPD imposed Instructions.
  - Case #201810625 involved substantiated allegations of Abuse of Authority – Property Damage, and Discourtesy – Action against Lt. Dym. The Board recommended Formalized training and the NYPD imposed Command Level Instructions.
  - Case #201900061 involved a substantiated allegation of Abuse of Authority – Entry of Premises against Lt. Dym. The Board recommended Command Level Instructions and the NYPD imposed formalized training.
  - Case #201902457 involved substantiated allegations of Force – Physical Force, Force – Restricted Breathing, Abuse of Authority – Body Cavity Searches, and Abuse of Authority – Strip Search against Lt. Dym. The Board recommended Charges with a recommendation that Lt. Dym be terminated, and the NYPD has not imposed discipline at this time.
  - Case #201903287 involved substantiated allegations of Abuse of Authority – Frisk, Abuse of Authority – Retaliatory Summons, and Abuse of Authority – Stop against



- Lt. Dym. The Board recommended Charges and the NYPD has not imposed discipline at this time.
- Case #201903682 involved substantiated allegations of Abuse of Authority – Interference with Recording, and Abuse of Authority – Retaliatory Summons against Lt. Dym. The Board Recommended Command Discipline B and the NYPD imposed Command Discipline B.
  - PO Johnson has been a member-of-service for 4 years and has been a subject in 3 CCRB complaints and 8 allegations, none of which were substantiated. § 87(2)(g)
  - PO Molina has been a member-of-service for 16 years and has been a subject in 11 CCRB complaints and 27 allegations, of which one was substantiated.
    - Case #201706354 involved a substantiated allegation of Abuse of Authority – Frisk against PO Molina. The Board recommended Command Discipline B and the NYPD imposed Formalized Training.
  - PO Joyce has been a member-of-service for 5 years and has been a subject in 3 CCRB complaints and 3 allegations, none of which were substantiated. § 87(2)(g)
  - PO Colon has been a member-of-service for 3 years and has been a subject of one complaint and one allegation, which was not substantiated. § 87(2)(g)
  - PO Fernandez has been a member-of-service for 7 years and has been a subject of one complaint and four allegations, two of which were substantiated.
    - Case #201902457 involved two substantiated allegations of Force – Physical Force, against PO Fernandez. The Board recommended Charges and the NYPD has not imposed discipline at this time.
  - PO Greaige has been a member-of-service for 5 years and has been a subject in 5 CCRB complaints and 23 allegations, one of which was substantiated.
    - Case #201905840 involved one substantiated allegation of Force – Physical Force against PO Greaige. The Board recommended Command Discipline A and the NYPD imposed Command Discipline A.
  - PO Carrasquillo has been a member-of-service of 4 years and has been a subject in 3 CCRB complaints and 22 allegations, none of which were substantiated.

#### **Mediation, Civil, and Criminal Histories**

- This complaint was not suitable for mediation.
- § 87(2)(b) filed a Notice of Claim with NYC claiming personal and physical injuries, an unlawful seizure, false arrest and imprisonment, malicious prosecution, abuse of process, negligence, intentional and negligent infliction of emotional distress, harassment, unconstitutional conditions of confinement, a deprivation of his constitutional, civil and common law rights, personal, physical, and emotional injuries, pain and suffering, fear, invasion of privacy, psychological pain, emotional distress, mental anguish, embarrassment, and humiliation and seeking \$1,000,000.00 as redress (BR 64). § 87(2)(a)

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

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Squad 6

Investigator: Mac Muir Supervising Investigator Muir 02.02.22  
Signature Print Title & Name Date

Squad Leader: Jessica Peña IM Jessica Peña 2/2/2022  
Signature Print Title & Name Date